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November 20, 2025

BY HAND DELIVERY & CM/ECF

The Honorable Leonard P. Stark
United States District Court for the District of Delaware
J. Caleb Boggs Federal Building
844 North King Street
Wilmington, DE 19801-3570

Re: *Crystallex International Corp. v. Bolivarian Republic of Venezuela*, D. Del. C.A. No. 1:17-mc-00151-LPS

Dear Judge Stark:

Pursuant to the Court's *Oral Order* dated November 18, 2025 (D.I. 2535) (the "**November 18 Order**"), I write to submit this joint status report on behalf of Special Master Robert B. Pincus (the "**Special Master**") in the above referenced matter.[1] Consistent with the November 18 Order, the Special Master, Amber, and the Sale Process Parties met and conferred regarding objections to the proposed Sale Order and the SPA.

Pursuant to these discussions, the Supporting Parties made a number of concessions to attempt to resolve the Venezuela Parties' objections with the proposed form of order. As described in greater detail in the chart of objections attached hereto, the only outstanding disputes for this Court to decide in connection with the Sale Order are limited to the following paragraphs: (i) Paragraph 13 (*Injunction*) (Venezuela Parties' Objection 1); (ii) Paragraph 20 (*Judicial Immunity and Exculpation*) (formerly Paragraph 21 in the Third Revised Proposed Sale Order) (Venezuela Parties' Objection 4); and (iii) Paragraph 18 (*Reporting Recoveries*) (Gold Reserve's objection to the paragraph inserted to resolve its prior objection).

Beyond objections to the three paragraphs described above, the remaining issues are merely preservations of rights (Objections 7 and 8) or relate to objections outside the four corners of the Sale Order—such as the Venezuela Parties' Objection 10, taking issue with the language of

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[1] Capitalized terms used but not defined herein shall have the meanings ascribed to such terms in the *Sixth Revised Proposed Order (A) Establishing Sale and Bidding Procedures, (B) Approving Special Master's Report and Recommendation Regarding Proposed Sale Procedures Order, (C) Affirming Retention of Evercore as Investment Banker by Special Master and (D) Regarding Related Matters* (D.I. 481) (the "**Sale Procedures Order**") or the *Special Master's Updated Final Recommendation* (D.I. 2123), dated August 29, 2025.

Amber's Undertaking regarding the PDVSA 2020 Bonds, but not with any language in the Sale Order itself.[2] Otherwise, the outstanding objections relate only to the SPA (Objections 20 and 21).

As the Court is aware, Amber's TSA with the PDVSA 2020 Bondholders requires entry of a Sale Order by December 1, 2025. *See* D.I. 2497 at 9; AM-46 at 813 (TSA § 4.1(h) requiring that "the Sale Order shall have been entered on or before December 1, 2025"); Oct. 21 H'rg Tr. 334:19-22 (Amber). The ad hoc group of PDVSA 2020 Bondholders have confirmed that both the Fourth Revised Proposed Sale Order with the Supporting Parties' proposed language or with the language proposed by the Objecting Parties (or some combination of the two) would be reasonably acceptable to them, and, in any event, regardless of whether Gold Reserve's proposed modifications to Paragraph 18 (O*bligation to Report Recovery on Attached Judgments. . .*) are accepted in whole or in part.

In addition to the confirmation from the PDVSA 2020 Bondholders described above, the Fourth Revised Proposed Sale Order with the Supporting Parties' proposed language has also received consent from the Special Master, Amber, and Amber's lenders, and therefore satisfies the closing conditions under the SPA.

Pursuant to the November 18 Order, attached hereto as **Exhibit A** is a jointly prepared table identifying and summarizing the disputes regarding the Venezuela Parties' remaining objections to the proposed Sale Order and the SPA. The table also includes an unresolved dispute regarding additional changes to paragraph 18 proposed by Gold Reserve. Attached hereto as **Exhibit B** is the Fourth Revised Proposed Sale Order, which contains revisions to the Third Revised Proposed Sale Order filed with the Court on November 14, 2025 (D.I. 2530-1) (such revisions are reflected in the redline attached hereto as **Exhibit C**). The Fourth Revised Proposed Sale Order displays the remaining disputed provisions and each parties' respective suggested language in accordance with the November 18 Order.[3]

Attached hereto as **Exhibit D** is the Second Amendment to the Stock Purchase Agreement (the "**Second SPA Amendment**"), executed by the Special Master and Amber, which resolves the Venezuela Parties' Objection No. 18 (*Incentive Bonuses*). Additionally, we have attached an Amended and Restated Undertaking, which relates to Objection No. 10, as **Exhibit E** and a redline against the prior version submitted at D.I. 2497-2 as **Exhibit F**.

[2] Amber has revised the Undertaking in an effort to resolve Objection 10. The Venezuela Parties have stated that they do not object to the language in the Sale Order, and simply maintain their objection to the language of the Undertaking. They are not asking the Court to resolve anything in that regard.
[3] The Venezuela Parties' alternative proposed language is identified in yellow highlight. The Supporting Parties' (as defined in Exhibit A) alternative proposed language is identified in blue highlight. Gold Reserve's alternative proposed language is identified in green highlight.

Respectfully,

/s/ Bindu A. Palapura

Bindu A. Palapura

cc: Counsel of Record (via electronic mail)

Exhibit [A]

Joint Table Summarizing Open Objections to the Proposed Sale Order

Status of Outstanding Objections to Proposed Sale Order[1]

Venezuela Parties' Objection No.[2]/Corresponding PSO Provision(s)	Description of Dispute[3]	Arguments
No. 1: *Injunctions (general)* PSO ¶¶ 10 (*Document Acceptance*), 13 (*Injunction*), Formerly 20 (*Non-Interference*), 20 (*Judicial Immunity & Exculpation*), and 24 (*Retention of Jurisdiction*)	Dispute regarding the authority for and scope of injunctions. **PARTIALLY RESOLVED** Objection only outstanding only as to ¶¶ 13 (*Injunction*) and 20 (*Judicial Immunity & Exculpation*).	**Special Master, Crystallex, ConocoPhillips, and Amber (together, the "Supporting Parties")** [4]: The Venezuela Parties objected to injunction language in paragraphs 10, 13, (formerly) 20, 20 and 24 of the Sale Order via Objections 1 and 4. After another meet and confer with the Venezuela Parties, Amber has agreed to meaningfully amend the injunction-related provisions in the Sale Order in an effort to minimize objections before this Court. Specifically, Amber accepted all of the Venezuela Parties' changes to Paragraphs 10, 20 (now deleted), and 24, resolving Objections 1 and 4 as to everything except Paragraphs 13 and 20. The Supporting Parties respond regarding Paragraph 20 in Objection 7. As to Paragraph 13, the Venezuela Parties have held firm in their position that it must be struck in its entirety based on their assertion that Court does not have authority to enjoin any party from asserting released claims against Amber and the PDVH Shares. Although the Supporting Parties disagree, they have agreed to modify the language to narrowly tailor the injunction to specific parties that are before this Court and otherwise streamline the language. As Amber and the Special Master have previously expressed (*see* D.I. 2497, 2497-1), the (now significantly narrowed) injunction in Paragraph 13 is well within the Court's authority and appropriate. It merely effectuates and protects the free and clear sale of the PDVH Shares and insulates Amber and its Affiliates from parties seeking to assert liabilities of the Venezuela Parties against them solely based on their purchase of those

[1] The paragraph references in this chart correspond to the Fourth Revised Proposed Sale Order (the "**PSO**") (attached contemporaneously herein as Exhibit B). The blue highlight in the PSO shows the alternative language proposed by the Supporting Parties. The yellow highlight in the PSO shows the alternative language proposed by the Venezuela Parties. The green highlight in the PSO shows the alternative language proposed by Gold Reserve.

[2] The objection numbers correspond to the objection numbers in prior briefing (D.I. 2489, 2495, 2497).

[3] For Objections 7 and 8, these issues are resolved for purposes of the Sale Order, but the Venezuela Parties note they are preserved for appeal. Additionally, for Objection 10, the Venezuela Parties do not object to the form of Sale Order; rather, they object only to Amber's Undertaking

[4] The Supporting Parties submit their responses to Objections 1 and 4 jointly.

Venezuela Parties' Objection No.[2]/Corresponding PSO Provision(s)	Description of Dispute[3]	Arguments
		shares. This language does not purport to bar claims against PDVH or its subsidiaries. *See* Sale Order fn. 6. Contrary to the Venezuela Parties' contentions, this injunctive provision does not require a showing of imminent injury, or that a party has taken any action that is to be enjoined. *See* D.I. 2497 at 4-5. Rather, an injunction of this nature is appropriate under the All Writs Act "whenever it is calculated in the court's sound judgment to achieve the ends of justice entrusted to it." *Klay v. United Healthgroup, Inc.*, 376 F.3d 1092, 1100 (11th Cir. 2004). Here, as just described, the injunction appropriately protects the Court's free and clear sale of the PDVH Shares to Amber. Additionally, the Venezuela Parties are incorrect that the All Writs Act does not apply simply because Rule 69 and Delaware law do apply. *See* D.I. 2497-1 at 2. In the cases they cite, the plaintiffs were seeking to use the All Writs Act to pursue recovery measures that conflicted with applicable state law. *See Aetna Cas. & Sur. Co. v. Markarian*, 114 F.3d 346, 350 (1st Cir. 1997); *Ivey v. Harney*, 47 F.3d 181, 182 (7th Cir. 1995). Here, the injunction does not replace or conflict with the remedy, but rather effectuates it. That is precisely what the All Writs Act allows. In light of the forgoing, the Supporting Parties respectfully request that the Court overrule Objections 1 and 4 following the meaningful effort to resolve the Venezuela Parties' concerns. The Supporting Parties respond to the Venezuela Parties' objections related to judicial immunity under Objection 7 below. **Venezuela Parties**: The VPs fully incorporate their positions as set forth in D.I. 2495 at 22–28. The VPs' objections were partially resolved by the deletion of former ¶ 20 and language in ¶ 10 and ¶ 24. Rule 69 and Delaware law authorize the Court to sell the shares free and clear of liens, claims, and encumbrances. But Delaware law does not provide the buyer in an execution sale the protection of an injunction against future claims. Nor does federal law. *See Sibbach v. Wilson & Co.*, 312 U.S. 1, 13 (1941); *Carlisle v. United States*, 517 U.S. 416, 429 (1966). Likewise, to the extent the Special Master and his advisors are entitled to judicial immunity from claims for damages, federal judicial officers do not typically

Venezuela Parties' Objection No.[2]/Corresponding PSO Provision(s)	**Description of Dispute[3]**	**Arguments**
		preemptively enjoin claims against themselves. The Court's jurisdiction to conduct an execution sale also does not grant it such broad injunctive authority, even in reliance on the All Writs Act. *See United States v. Denedo*, 556 U.S. 904, 911 (2009); *Grider v. Keystone Health Plan Cent., Inc.,* 500 F.3d 322, 328–29 (3d Cir. 2007). Moreover, neither the Special Master ("SM") nor Elliott have shown or even attempted to show that they are "likely to suffer" an imminent injury to have standing to obtain prospective relief or that they satisfied the requirements for a permanent injunction. *See Monsanto Co. v. Geertson Seed Farms*, 561 U.S. 139, 153, 156–57 (2010). They also repeatedly failed to respond to these arguments and so have forfeited/conceded them.
No 4: Injunctions (First Amendment activity PSO ¶¶ Formerly 20 (*Non-Interference*), 20 (*Judicial Immunity & Exculpation*), and 24 (*Retention of Jurisdiction*)	Dispute regarding the authority for and scope of injunctions as it relates to First Amendment activity. **PARTIALLY RESOLVED** Objection outstanding only as to ¶ 20 (*Judicial Immunity & Exculpation*)	**Supporting Parties**: The Supporting Parties responded jointly above with the response to Objection 1 above. **Venezuela Parties**: The VPs fully incorporate their position as set forth in D.I. 2495 at 31–33. In addition to the reasons described in Objection No. 1, the injunction in ¶ 20 is doubly problematic because it prohibits activity protected by the First Amendment. Restricting the ability of any person or entity to file future legal claims is a blatant violation of the First Amendment. *See Bill Johnson's Restaurants, Inc. v. N.L.R.B.*, 461 U.S. 731, 742–43 (1983) (given "First Amendment right of access to the courts," the "filing and prosecution of a well-founded lawsuit may not be enjoined"). Paragraph 20 enjoins all persons and entities from "pursu[ing] any cause of action or commenc[ing] or prosecut[ing] any suit or proceeding against the Special Master" or his advisors "for any reason whatsoever relating to this Action." The Special Master has not attempted to explain how such an injunction possibly could survive strict scrutiny.
No. 6: Applicable law PSO at 1; *id.* ¶¶ B (*Statutory and Rule Predicates*), L (*Necessary Conditions*), O (*Sale Authority*), and 6 (*Consummation of Sale Transaction(s)*)	Dispute regarding the sources of applicable law invoked as support for the Sale Order. **RESOLVED**	**Supporting Parties**: The Venezuela Parties take the position that this Court may not invoke federal law as a source of its authority to sell the PDVH Shares, notwithstanding the fact that this Court is a federal District Court enforcing a federal judgment which has been appealed and affirmed by the Third Circuit. In the spirit of resolving objections, Amber has agreed to remove certain references to federal law, including the All Writs Act, 28 U.S.C. § 2004, and Federal Rule of Civil Procedure 53, or otherwise indicate that the references to these are "as applicable." These changes are embodied in the following paragraphs of the Sale Order: the opening paragraph on page 1 of the Sale Order, Paragraph B, Paragraph L, Paragraph O, Paragraph 6, Paragraph 11, and

Venezuela Parties' Objection No.[2]/Corresponding PSO Provision(s)	**Description of Dispute[3]**	**Arguments**
		Paragraph 13. Accordingly, Objection 6 has been resolved for purposes of the language in the Sale Order. Nonetheless, as Amber expressed in its reply brief (*see* D.I. 2497 at 5-6), the Court's invocation of federal law is inherently appropriate. The Court has previously found that Rule 53, the All Writs Act, and the Court's general equitable powers as statutory and legal predicates for the judicial sale. *See* D.I. 481 at 5-6. Moreover, to the extent the Court offers an opinion supporting its reasoning, separate and apart from the Sale Order, Amber continues to believe that the Court can, and indeed should, expressly invoke these sources of federal law as an appropriate basis for this Court's authority. **Venezuela Parties**: Without waiving any objections asserted in the VPs' current or previous filings, the changes to the PSO making clear that any references to sources of authority are "as applicable" are sufficient to resolve this objection to the form of the order. The VPs maintain their position that this sale is governed by Delaware law, specifically 8 Del. C. § 324, not the federal judicial sale statute, 28 U.S.C. § 7004 and that the All Writs Act, the Court's general or inherent equitable authority, and other cited provisions or doctrines do not provide separate or additional authority to enforce the judgments or provide remedies not authorized by Delaware law.
No. 7: Judicial Immunity PSO ¶ 20 (*Judicial Immunity & Exculpation*)	Dispute regarding the scope of judicial immunity for the Special Master and the Special Master's Advisors. **UNRESOLVED** Asserted for preservation purposes only.	**Supporting Parties**: The Court has already determined that the Special Master and his Advisors are entitled to judicial immunity, as well as an injunction and release effectuating that immunity. The PSO reiterates the judicial immunity and protections the Court granted to the Special Master and his Advisors in the Sale Procedures Order. *See* Sale Procedures Order ¶ 46; *see also* D.I. 277 ¶ 21. In doing so, the Court explicitly overruled the Venezuela Parties' objection and recognized that "judicial immunity, in the unique circumstances presented by this litigation, ensures that the Special Master can retain qualified experts." D.I. 469 at 9 n.7. As the Third Circuit has explained, "an individual acting in a judicial capacity," including a special master, is "absolutely immunized" and "shielded from suit for the performance of judicial acts," even if the special master was "acting erroneously." *Wallace v. Abell*, 318 F. App'x 96, 99 (3d Cir. 2009) (citations omitted). An injunction and release are necessary to shield the Special Master and his advisors from suit for their performance of their duties. Without those protections, the Special Master and his advisors may be forced to expend significant time and resources asserting the judicial immunity defense. Such an outcome is wholly inconsistent with well-established law. *See Pierson v. Ray*, 386 U.S.

Venezuela Parties' Objection No.[2]/Corresponding PSO Provision(s)	**Description of Dispute[3]**	**Arguments**
		547, 554-55 (1967) ("Few doctrines were more solidly established at common law than the immunity of judges from liability for damages for acts committed within their judicial jurisdiction[.]"). **Venezuela Parties**: Asserted for preservation purposes. The VPs renew and preserve for appeal their previously overruled objections (*e.g.*, D.I. 317 at 24; D.I. 469 at 9, n.7 (overruling same)) to the scope of the Special Master and his advisors' judicial immunity. See Objection Nos. 1 and 4 regarding objections to the judicial-immunity-related injunction sought by the SM and his advisors
No. 8: Time to Respond to Updated Recommendation PSO ¶ D (*Notice and Opportunity to Object*)	Dispute regarding the adequacy of the opportunity to object. **PARTIALLY RESOLVED** Partially unresolved but asserted for preservation purposes only. Resolved as to the form of the PSO.	**Supporting Parties**: Amber understands that this objection from the Venezuela Parties is largely an effort to preserve for appeal the argument that this sale process has not provided them an adequate opportunity to be heard, rather than a true objection to the Sale Order. Regardless, and in an effort to avoid unnecessary disagreements, Amber agreed to remove the words "fair and reasonable" from Paragraph D to accommodate the Venezuela Parties' objection. Therefore, Objection 8 has been resolved, other than a preservation by the Venezuela Parties for appeal. This change, of course, does not mean that Amber agrees with the Venezuela Parties. To the contrary, the Venezuela Parties (and all interested parties) have had a fair and reasonable opportunity to review and object to the Amber bid. If the Court issues a separate opinion explaining its rationale for entering the Sale Order, Amber respectfully submits that it would be appropriate to make such a finding therein. The Sale Process Parties and the Additional Judgement Creditors have had multiple rounds of pre-trial briefing, a four-day sale hearing, multiple rounds of post-trial briefing, and another day of argument related to the Amber bid, in addition to multiple collateral attacks on Amber's bid beginning with Gold Reserve's motion to strike which the Venezuela Parties joined (*see* D.I. 2175). The public has had access to Amber's bid since it was filed on the docket in August. This is on top of *years* of this sale process, during which the Venezuela Parties have been consistently heard. **Venezuela Parties**: The VPs' objection to the language in ¶ D has been resolved through the deletion of the language "fair and reasonable" before "opportunity to object." The VPs preserve for appeal the argument that the truncated time to review and respond to

Venezuela Parties' Objection No.[2]/Corresponding PSO Provision(s)	Description of Dispute[3]	Arguments
		the updated Final Recommendation deprived them of due process. D.I. 2109 at 2 (Gold Reserve suggesting the schedule proposed by Special Master and later adopted by the Court was not "consistent with due process"); D.I. 2110 at 1 (finding that the schedule does not "risk[] in-fringing any entity's due process or other rights").
No. 10: Bond Extinguishment PSO ¶ 29 (*2020s Notes Undertaking*)	Dispute regarding whether the effectiveness of the Court's Sale Order should be a condition to Amber's undertaking to provide debt relief to VZ in respect of the PDVSA 2020 Bonds purchased by Amber under the TSA. **RESOLVED**	**Supporting Parties**: Amber revised Paragraph 29 and the Undertaking to eliminate any perceived ambiguity regarding Amber's commitment. Amber has committed that it will not seek payment from PDVSA and its affiliates on the tendered 2020 Notes so long as the Court's Sale Order remains in effect. This necessary contingency is the focus of the Venezuela Parties' objection. Amber has no interest in becoming a creditor of Venezuela, but its undertaking not to seek payment on the 2020 Notes is fairly premised on Amber receiving the benefit of its bargain, namely ownership of the PDVH Shares. In the unlikely event that Amber finds itself holding 2020 Notes without such ownership (which would only arise in the extraordinary event the Sale Order is overturned and the transaction is rescinded), Amber will not have received what it bargained for, and PDVSA will have received a windfall. Accordingly, the Court should overrule this objection. Similarly, any objections to the conditions precedent to actual extinguishment of the 2020 Notes should be overruled. The release of the lien alone does not act as a final bar; subsequent acts and litigation could result in the lien being re-instated. So long as that legal risk exists, Amber is entitled to the bargained-for protection afforded by its ownership of a majority of the outstanding 2020 Notes (subject in all events to its undertaking not to seek payment on such notes). **Venezuela Parties**: PDVSA maintains that Elliot's undertaking, including the "reasonable best efforts" standard under which Elliott and Amber purport to cause the 2020 Notes to be cancelled or extinguished, is not consistent with Elliott's prior representations before the Court. *See* Aug. 18 H'rg Tr. at 194:16–195:1; D.I. 2123 ¶ 9; D.I. 2374-2 ¶ 251. Moreover, the undertaking remains subject to a number of vague and contingent conditions, such as the requirement that there be "no pending or threatened proceedings commenced" to challenge "the validity of" the TSA which could, in practice, include any action taken by a non-consenting 2020 Bondholder to the Private Exchange contemplated therein. D.I. 2497-2 at 3. Finally, PDVSA maintains its position that it does not consent to any purported settlement of the 2020 Bondholders' litigation. The VPs view the inclusion of Paragraph 29 in the [Fourth] Revised PSO as merely

Venezuela Parties' Objection No.[2]/Corresponding PSO Provision(s)	Description of Dispute[3]	Arguments
		reflecting Elliott's own commitment to comply with its own undertaking, and not as a resolution in any way of this objection as previously explained in their November 13, 2025 letter (D.I. 2529 at n.1). Thus, the proposed inclusion of Elliott's commitment to extinguish the 2020 Bonds in the PSO and/or the SPA is being submitted under a full reservation of rights.
N/A – Gold Reserve's Objection PSO ¶ 18 (*Obligation to Report Recovery on Attached Judgments; Amendment to Attached Judgment Amount Schedule and Impact on Payments to holders of Attached Judgments*)	Dispute regarding Alternative Recovery Amount provision. **UNRESOLVED**	**Supporting Parties**: There is no agreement on the revisions proposed by Gold Reserve to the second sentence. It is agreed that if an Attached Judgment Creditor *receives* payment on account of its Attached Judgment prior to closing, it should not be entitled to double recovery in these proceedings. If it receives only a right, promise or potential (by court order or otherwise) to recover in the future, its right to recovery in these proceedings should not be reduced because it has not yet received actual payment. The Supporting Parties also object to the requirement that the source of any payment be disclosed on the docket, as the source is irrelevant and its disclosure could be prejudicial to further collection efforts. If the language requiring the source to be disclosed is not deleted, the Supporting Parties request the following language be inserted: " Notwithstanding the above, if determined by any holder of an Attached Judgment, in its sole discretion, that the public docketing of any information contemplated by this provision may be contrary to law or may implicate sensitive, commercial or competitive information, or any information protected from public disclosure by any privilege or other legitimate protection from disclosure, the holder of an Attached Judgment may comply with this provision by notifying the Court and Special Master by filing such notice under seal." **Gold Reserve**: At the October 21 hearing, Gold Reserve proposed the "anti-double recovery" concept reflected in Paragraph 18 to ensure that if an AJC becomes entitled to an alternative payment on their attached judgment in advance of Closing, there should be no improper double-recovery and the sale proceeds that otherwise would have been paid to that AJC are distributed to other AJCs. Gold Reserve has three revisions to the November 17 draft PSO to ensure these objectives are met. The <u>first</u> – insertion of "settlement, or otherwise" in the first sentence – confirms that this provision applies to ***any*** Alternative Recovery from any source, not just payments resulting from "entry of a court order." The <u>second</u> – deletion of "on or prior to the anticipated closing of this sale of this sale of the PDVH Shares" – in the same sentence, clarifies that it is not date of ***payment*** that triggers the provision, but date of creation of the ***entitlement*** to payment. So, if a settlement or court order is entered into pre-Closing, but some payments are

Venezuela Parties' Objection No.[2]/Corresponding PSO Provision(s)	Description of Dispute[3]	Arguments
		made post-Closing, then to avoid a double-recovery the AJC's judgment should be reduced by total amount of the settlement/court order, not just the amounts paid pre-Closing. The <u>third</u> – insertion of the concept of the "Attached Judgement Reduction Amount" – covers a settlement scenario. So, if an AJC were to agree to take $75 million in exchange for extinguishing $500 million of its attached judgment, it would be that $500 million that is deducted from the waterfall.

Status of Outstanding Objections to the Stock Purchase Agreement[5]

Venezuela Parties' Objection No.[6] /Corresponding SPA Provision	Description of Dispute	Arguments
No. 18: Incentive Bonuses SPA Section 6.19 (*Interim Period Incentive Bonuses*)	Dispute regarding revised section 6.19 of the SPA and potential incentive bonuses for CITGO management. **RESOLVED**	**Supporting Parties**: Amber understands that the Venezuela Parties continue to object to the memorialization of Amber's intent to offer incentive bonuses to CITGO employees, despite Amber's prior modifications to make such bonuses permissive (not mandatory) and clarification that such bonuses would never obligate a CITGO employee to violate their fiduciary duties. *See* D.I. 2497-1 at 17. Amber continues to view the offering and payment of any such incentive bonuses as an entirely appropriate way of aligning interests with the management team, who continues to operate CITGO's business throughout this extraordinary litigation and sale process. However, in a good faith effort to minimize the issues before this Court, Amber has agreed to delete Section 6.19 from the SPA. Accordingly, Objection 18 is resolved. **Venezuela Parties**: This dispute was resolved by the deletion of Section 6.19 of the SPA and Section 6.19(b) of the Company Disclosure Schedules in the Second Amendment to the proposed SPA.
No 20. Contract Interference SPA Section 6.1(b)(xi) (*Conduct of the Business Prior to Closing*)	Dispute regarding the Acquired Companies' ability to enter into, amend, or renew contracts with PDVSA. **UNRESOLVED**	**Supporting Parties**: Amber has not agreed to modify Section 6.1(b)(xi) of the SPA to eliminate its right to consent to any transactions between PDVH/CITGO and PDVSA during the pre-closing period. As Amber has repeatedly expressed to the Venezuela Parties, Amber has no concern with economically rational transactions with PDVSA if it is in the best interest of CITGO, but it is for Amber to determine that is indeed the case. In any event, Amber's consent under Section 6.1(b) to such a contract cannot be "unreasonably withheld, conditioned or delayed." Recognizing misaligned incentives between the departing and incoming owners, this consent right is standard across M&A transactions—the logic being that a seller should not be permitted to enrich itself and its affiliates by causing the target to enter into enforceable contracts with related parties that will survive the closing at the expense of

5 The section references in this chart correspond to the SPA executed on September 19, 2025 (D.I. 2319-1), as amended by D.I. 2530-1 and Exhibit D, filed contemporaneously herewith.

6 The objection numbers correspond to the objection numbers in prior briefing (D.I. 2489, 2495, 2497).

Venezuela Parties' Objection No.[6] /Corresponding SPA Provision	**Description of Dispute**	**Arguments**
		the buyer. Requiring this protection is not to accuse the seller of acting nefariously, but rather to acknowledge the obvious (and avoidable) conflicts of interest posed by a departing seller with interests that may be served by the target enterprise beyond the closing. Moreover, CITGO is currently prohibited from contracting with PDVSA due to sanctions. This concern from the Venezuela Parties would only arise in the unlikely scenario of a regime change and lifting of OFAC restrictions before a closing of the Sale Transaction. Amber submits that this Court should reject Objection Number 20. **Venezuela Parties**: Without limitation, in the event of a change in government in Venezuela and the subsequent lifting of sanctions, contracts with PDVSA in the ordinary course must be permitted. The VPs therefore object to the prohibition on entering, amending, or renewing any contract with PDVSA. This provision impermissibly limits the ability of the CITGO Companies to transact with PDVSA beyond the already restrictive interim operating covenants. Moreover, as the SM has acknowledged, any such contracting is subject to OFAC authorization. The SM and Elliott should not be permitted to use the SPA—a contract between private parties—to tie OFAC's hands in exercising its discretion to permit specific interactions between CITGO and PDVSA. Further, each of the CITGO Companies' existing contracts for crude, products, and marketing have a standard termination provision under which the agreement can be terminated with notice ranging from 15–90 days, and that ordinary practice would continue if any new contract were entered into during the interim period (with OFAC authorization). To that end, the VPs propose striking the following language from 6.1(b)(xi) "and; provided, further, that no Acquired Company shall enter into, amend or renew any Contract with PDVSA".
No. 21: Termination N/A – proposed insertion	Dispute regarding the requested insertion of a termination right in the SPA triggered upon PDVSA prevailing on appeal in the 2020 Bondholders litigation. **UNRESOLVED**	**Supporting Parties**: The Venezuela Parties continue to seek insertion of a provision that would terminate Amber's SPA and TSA if the Bondholders lose on appeal. Any such provision would undermine the very foundation of the settlement of the 2020 Bondholders, which is premised upon their agreement to accept a discount before Judge Failla's ruling in their favor and certainly before any appellate court's review. This, in turn, would undermine the SPA itself, which is in part premised upon that settlement and the certainty it provided to the sale process. The Venezuela Parties would like these agreements to be one-sided, rescinding the debt extinguishment if Judge Failla's validation of the 2020 Bonds is reversed—without offering similar compensation to the

Venezuela Parties' Objection No.[6] /Corresponding SPA Provision	Description of Dispute	Arguments
		2020 Bondholders (for example, making up the discount the Bondholders accepted pursuant to the TSA) in the settlement if Judge Failla's ruling is affirmed. This one-sided escape route would fundamentally distort the benefit of the bargain underlying the TSA and the SPA, and indeed is entirely contrary to the fundamental premise underlying any litigation settlement. Accordingly, Amber respectfully submits that the Court should overrule the Objection Number 21. **Venezuela Parties**: The Court has previously stated that it could constitute a "fundamental injustice" if the SM were to close on a bid that placed "substantial value on a settlement of the 2020 Bondholders' litigation," but the 2020 Bondholders were later found to have "no rights to CITGO Holding." D.I. 1740 at 7-8. To avoid such a fundamental injustice from occurring, the VPs maintain that the SM must be allowed to terminate the SPA with Amber if the Second Circuit vacates Judge Failla's decision. Moreover, to the extent that the insertion of such a provision introduces such "significant risk", it tends to undermine the SM's prior representations about the degree of closing certainty in Elliott's bid. D.I. 2123 ¶¶ 19–21. Therefore, to avoid the fundamental injustice of the 2020 Bondholders receiving a $2.125 billion payment for legally invalid bonds, the VPs request insertion of a provision allowing the Special Master to terminate the SPA if PDVSA prevails in the Bondholder Litigation on appeal

Exhibit [B]

[Fourth Revised Proposed Sale Order]

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF DELAWARE

CRYSTALLEX INTERNATIONAL CORP., Plaintiff, v. BOLIVARIAN REPUBLIC OF VENEZUELA, Defendant.	)	Misc. No. 17-151-LPS

ORDER (I) APPROVING STOCK PURCHASE AGREEMENT, (II) AUTHORIZING SALE OF THE PDVH SHARES FREE AND CLEAR OF LIENS, CLAIMS, ENCUMBRANCES, AND OTHER INTERESTS, AND (III) GRANTING RELATED RELIEF[1]

Upon the updated recommendation, dated August 29, 2025 (the "**Recommendation**"),[2] of Robert B. Pincus, in his capacity as Special Master for the United States District Court for the District of Delaware (the "**Special Master**") in the above captioned case (the "**Action**"), recommending entry of an order authorizing and approving the sale of the PDVH Shares pursuant to applicable law; and this Court having taken into consideration this Court's prior orders, including the *Order Regarding Special Master* [D.I. 277] (the "**Special Master Order**"), the *Memorandum Order* [D.I. 646], the *Final Priority Order* [D.I. 1102] (the "**Final Priority Order**"), and the *Sixth Revised Proposed Order (A) Establishing Sale and Bidding Procedures,*

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[1] Pursuant to the Court's Order on November 18, 2025 (D.I. 2535), The Venezuela Parties alternative proposed language is identified in yellow highlight. The Supporting Parties' (as defined in Exhibit A) alternative proposed language is identified in blue highlight. Gold Reserve's alternative proposed language is identified in green highlight.

[2] Capitalized terms used but not herein defined shall have the meanings ascribed to such terms in the Sale Procedures Order, the Recommendation or the Stock Purchase Agreement (each as herein defined), as applicable and as context may require.

(B) Approving Special Master's Report and Recommendation Regarding Proposed Sale Procedures Order, (C) Affirming Retention of Evercore as Investment Banker by Special Master and (D) Regarding Related Matters [D.I. 481], (the "**Sale Procedures Order**", and the bidding procedures for the sale of the PDVH Shares approved thereby, the "**Bidding Procedures**"); the *Memorandum Order Regarding Sale Process and Litigation* [D.I. 1517] (the "**December 2024 Order**"), the *Order* [D.I. 1741] designating Red Tree Investments, LLC as the Stalking Horse (the "**Stalking Horse Order**"), and the *Order Regarding Schedule for the Remainder of the Marketing Process* [D.I. 1745] (the "**April 2025 Scheduling Order**"), the *Order* entering a schedule proposed by the Special Master [D.I. 1809] (the "**June 2025 Scheduling Order**"), the *Order* [D.I. 2056] continuing the Sale Hearing previously scheduled for August 18, 2025, and the *Scheduling Order* [D.I. 2110] (the "**August 2025 Scheduling Order**") setting the continued hearing to commence September 15, 2025 and providing for the submission of best and final unsolicited bids by August 22, 2025 (all such orders, collectively, the "**Sales Process Orders**"); and four solicited rounds of bidding (the "**Bidding Rounds**") having been held for the consideration of Qualified Bids and the selection of a Successful Bidder (each as defined in the Sale Procedures Order and the Bidding Procedures); and Buyer[3] having submitted the best bid for the PDVH Shares and having been recommended as the Successful Bidder by the Special Master with respect to the PDVH Shares; and this Court having conducted a hearing commencing September 15, 2025 (the "**Sale Hearing**") to consider the Sale Transaction (as defined herein), during which time all interested parties were offered an opportunity to be heard with respect to the

[3] For the purposes of this Order, "**Buyer**" means Amber MSub LLC (together with its permitted assigns pursuant to Section 9.10 of the Stock Purchase Agreement (as defined below)); _provided_, _however_, that from and after the Closing, the term Buyer shall exclude PDVH and any of its direct or indirect subsidiaries and their respective successors and assigns by merger or otherwise.

Recommendation; and this Court having reviewed and considered (i) the Recommendation and the exhibits thereto; (ii) the Buyer's materials submitted in support of its bid, including[4] the Stock Purchase Agreement, dated as of September 19, 2025 (together with the exhibits thereto, as may be amended, modified, or supplemented from time to time in accordance with the terms thereof, the "**Stock Purchase Agreement**") attached as **Exhibit A** hereto, by and among the Special Master and Buyer, whereby the Special Master, at the direction of the Court, has agreed to, among other things, sell or cause to be sold the PDVH Shares to Buyer, on the terms and conditions set forth in the Stock Purchase Agreement (the "**Sale Transaction**"); (iii) the notarized affirmations of publication attached hereto as **Exhibit B** (collectively, the "**Publication Affidavits**"); and (iv) the arguments of counsel made, and the evidence therein proffered or adduced at the Sale Hearing; and due notice of the Recommendation, the Sale Hearing, and the form of this Order having been provided; and all objections to the Sale Transaction and the Order having been withdrawn, resolved, or overruled [except as otherwise provided herein or as provided in any subsequent Opinion or Order issued by the Court that modifies this Order]; and it appearing that the relief granted herein is consistent with the directives of the Sale Procedures Order; and upon the record of the Sale Hearing and this Action; and after due deliberation and sufficient cause appearing therefor;

IT IS HEREBY FOUND AND DETERMINED THAT:

A. *Jurisdiction and Venue*. The Court has jurisdiction to grant the relief recommended in the Recommendation pursuant to 28 U.S.C. §§ 1330, 1367, and 1605(a)(6) and its ancillary jurisdiction to enforce federal judgments. Venue is proper before the Court pursuant to 28 U.S.C. § 1963. Further, the Court has jurisdiction over the Additional Judgment Creditors (as

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[4] The term "including," wherever it is used in this Order, means "including, without limitation."

defined in the Sale Procedures Order and as set forth in the Final Priority Order) and all other interested parties appearing in this proceeding pursuant to 28 U.S.C. § 1367 and over Crystallex International Corporation ("**Crystallex**") pursuant to ancillary jurisdiction for enforcing an arbitral award reduced to a federal judgment. *See Crystallex Int'l Corp. v. Bolivarian Republic of Venezuela*, 932 F.3d 126 (3d Cir. 2019).

B. *Statutory and Rule Predicates*. The predicates for the relief granted herein include, as applicable, (i) Rules 53 and 69 of the Federal Rules of Civil Procedure, (ii) Section 324 of Title 8 of the Delaware Code, (iii) the Court's general equitable powers to enforce its orders and judgments, *see Chambers v. NASCO, Inc.*, 501 U.S. 32, 43 (1991) (quoting *Link v. Wabash R.R. Co.*, 370 U.S. 626, 630–31 (1962)), (iv) the All Writs Act (*see United States v. N.Y. Tel. Co.*, 434 U.S. 159, 172 (1977) ("This Court has repeatedly recognized the power of a federal court to issue such commands under the All Writs Act as may be necessary or appropriate to effectuate and prevent the frustration of orders it has previously issued in its exercise of jurisdiction otherwise obtained.")), and (v) 28 U.S.C. § 2004.

C. *Sale Notice*. As evidenced by the Publication Affidavits and the status reports filed on the Court's public docket on October 23, 2023 [D.I. 771], January 8, 2024 [D.I. 839], and April 16, 2024 [D.I. 1134] (the "**Status Reports**"), and the Court's orders setting deadlines for the Marketing Process including the December 2024 Order, the April 2025 Scheduling Order, the *Order* [D.I. 1779] extending the topping period, the June 2025 Scheduling Order, and the August 2025 Scheduling Order: (i) due, proper, timely, adequate, and sufficient notice of the PDVH Shares being sold, the Recommendation, the Bidding Rounds, the Bidding Procedures (including the bidding process and the deadline for submitting bids for the Bidding Rounds), the Sale Hearing, the Sale Transaction, and the Order was provided by the Special Master; (ii) such notice was and is good, sufficient, and appropriate under the particular circumstances and complies with the Sale Procedures Order, the Bidding Procedures, and applicable law; and (iii) no other or further notice of the Recommendation, the Bidding Rounds, the Bidding Procedures, the Sale Hearing, the Sale Transaction, or the Order is required. With respect to Persons whose identities are not reasonably ascertained by the Special Master, as evidenced by the Publication Affidavits, publication of the notice each in the national print editions of *USA Today* on January 12, 2024, January 19, 2024, June 3, 2024, June 10, 2024, February 25, 2025, March 4, 2025, May 5, 2025, and May 12, 2025, *the Wall Street Journal* on January 12, 2024, January 19, 2024, June 1, 2024, June 8, 2024, February 24, 2025, March 3, 2025, May 3, 2025, and May 10, 2025, the *Delaware State News* on January 12, 2024, January 19, 2024, June 2, 2024, June 11, 2024 (e-edition), June 12, 2024 (print edition), February 26, 2025, March 5, 2025, May 7, 2025, and May 14, 2025, the *Delaware News Journal* on January 12, 2024, January 19, 2024, June 4, 2024, June 11, 2024, February 25, 2025, March 4, 2025, May 6, 2025, and May 13, 2025, as well as the Venezuelan publication *La Razón* on June 9, 2024, March 2, 2025, March 9 2025, May 4, 2025, and May 11, 2025, was sufficient and reasonably calculated under the circumstances to reach such Persons and is in compliance with the Sale Procedures Order, Bidding Procedures, and applicable law including Section 324 of Title 8 of the Delaware Code (collectively, the "**Publication Notices**").

D. *Notice and Opportunity to Object.* As evidenced by the Publication Affidavits and the Status Reports [D.I. 771, 839 & 1134], an opportunity to object to, and be heard with respect to, the Recommendation, the Bidding Rounds, and the Sale Transaction has been given to any and all Persons who are or could be entitled to notice pursuant to the Sale Procedures Order and the Bidding Procedures, including, but not limited to, the following: (i) Buyer by its counsel Akin Gump Strauss Hauer & Feld and Quinn Emanuel Urquhart & Sullivan, LLP; (ii) PDVH Holding, Inc. (“**PDVH**”), by its counsel Eimer Stahl LLP (“**Eimer Stahl**”); (iii) CITGO Petroleum Corporation (“**CITGO**”), by its counsel Eimer Stahl; (iv) Petróleos de Venezuela, S.A., by its counsel Curtis, Mallet-Prevost, Colt & Mosle LLP (“**PDVSA**”); (v) the Bolivarian Republic of Venezuela (the “**Republic**”), by its counsel Munger, Tolles & Olson LLP; (vi) Crystallex International Corporation, by its counsel Gibson Dunn & Crutcher, LLP; (vii) Phillips Petroleum Company Venezuela Limited and ConocoPhillips Petrozuata B.V. (“**ConocoPhillips**”), by their counsel Wachtell, Lipton, Rosen & Katz; (viii) Former Additional Judgment Creditor, Altana Credit Opportunities Fund SPC, Altana Credit Opportunities Fund 1 SP, and Altana Funds Ltd. Cayman, by their counsel Bayard, P.A.; (ix) Additional Judgment Creditor, ACL1 Investments Ltd., ACL2 Investments Ltd. and LDO (Cayman) XVIII Ltd., by their counsel Riley & Jacobson, PLC; (x) Additional Judgment Creditor, Contrarian Capital Fund I, L.P., Contrarian Dome du Gouter Master Fund, LP, Contrarian Capital Senior Secured, L.P., Contrarian EM II, LP, Contrarian Emerging Markets, L.P., Boston Patriot Summer St LLC, Polonius Holdings, LLC, Emma I Master Fund, L.P., E1 SP, a Segregated Account of EMAP SPC, and Contrarian Capital Management, L.L.C., Contrarian Funds, L.L.C., by their counsel MoloLamken LLP; (xi) Additional Judgment Creditor, Gold Reserve Inc., by its counsel Norton Rose Fulbright US LLP; (xii) Additional Judgment Creditor, Huntington Ingalls Incorporated, f/k/a, Northrop Grumman Ship Systems, Inc., f/k/a Ingalls Shipbuilding, Inc., by its counsel Alston & Bird, LLP; (xiii) Additional Judgment Creditor, Koch Minerals Sàrl and Koch Nitrogen International Sàrl, by their counsel Alston & Bird, LLP and Stinson LLP; (xiv) Additional Judgment Creditor, OI European Group B.V., by its counsel Morgan, Lewis & Bockius LLP; (xv) Former Additional Judgment Creditor, Pharo Gaia Fund, Ltd., Pharo Macro Fund, Ltd., and Pharo Trading Fund, Ltd., by their counsel Bayard, P.A.; (xvi) Additional Judgment Creditor, Red Tree Investments, LLC, by its counsel MoloLamken LLP; (xvii) Former Additional Judgment Creditor, Rudi Lovati and Alessandro Lucibello Piani, by their counsel Duane Morris LLP; (xviii) Additional Judgment Creditor, Rusoro Mining Limited, by its counsel DLA Piper LLP (US); (xvix) Additional Judgment Creditor, Saint-Gobain Performance Plastics Europe, by its counsel Alston & Bird, LLP; (xx) Additional Judgment Creditor, Siemens Energy, Inc., by its counsel Reed Smith LLP; (xxi) Additional Judgment Creditor, Tenaris S.A., Talta-Trading e Marketing Sociedade Unipessoal Lda., and Gramercy Distressed Opportunity Fund LLC, by their counsel (a) Debevoise & Plimpton LLP, (b) Halloran Farkas and Kittila LLP and (c) Skadden, Arps, Slate, Meagher & Flom LLP ("**Skadden**"); (xxii) Additional Judgment Creditor, Tidewater Investment SRL and Tidewater Caribe S.A., by their counsel Covington & Burling LLP; (xxiii) Additional Judgment Creditor, Valores Mundiales, S.L. and Consorcio Andino, S.L., by their counsel Covington & Burling LLP; (xxiv) Mobil Cerro Negro Holding, LLC., Venezuela Holdings, B.V., and Mobil Cerro Negro, Ltd., by their counsel Connolly Gallagher LLP; (xxv) Banco San Juan Internacional, Inc., by its counsel McCollom D'Emilio Smith Uebler LLC; (xxvi) G&A Strategic Investments I LLC, G&A Strategic Investments II LLC, G&A Strategic Investments III LLC, G&A Strategic Investments IV LLC, G&A Strategic Investments V LLC, G&A Strategic Investments VI LLC, and G&A Strategic Investments VII LLC, by their counsel (a) Andrew H. Sauder of Dailey LLP and (b) Skadden; (xxvii) Girard Street Investment Holdings LLC, by its counsel (a) Andrew H. Sauder of Dailey LLP and (b) Skadden; (xxviii) Refineria Di Korsou N.V., by its counsel Gellert Scali Busenkell & Brown, LLC; (xxvix) Ricardo Devengoechea, by his counsel Werb & Sullivan; (xxx) all Persons or entities known by the Special Master to hold any judgment or have asserted any lien, claim, encumbrance, or other interest in the PDVH Shares, for whom identifying information and addresses are available to the Special Master (the parties listed at ii-xxx, the

"**Interested Parties**"); (xxxi) the United States Department of Treasury's Office of Foreign Assets Control ("**OFAC**"); and (xxxii) all other Persons as a result of Publication Notice or other notice (the parties listed at i–xxxii above, the "**Notice Parties**").

E. *Reasonable Discretion*. The Special Master has exercised his reasonable discretion in offering the PDVH Shares for sale, in units and as a whole, and has demonstrated good, sufficient, and sound justifications for approval of and entry into the Stock Purchase Agreement and the other agreements, documents, and instruments deliverable thereunder or attached thereto or referenced therein (collectively, the "**Transaction Documents**")[5] and for approval of the Sale Transaction. The Special Master's entry into and performance under the Transaction Documents (i) constitutes a sound and reasonable exercise of the Special Master's discretion consistent with the exercise of his duties to the Court in accordance with the Bidding Procedures and his responsibilities under the Sale Procedures Order and Bidding Procedures, (ii) represents the best opportunity for the Notice Parties, as applicable, to recover value from the PDVH Shares on account of any judgments or Claims they may have against the Republic or PDVSA, and (iii) is reasonable and appropriate under the circumstances. Evidence of the Special Master's reasonable discretion in entering into and performing under the Transaction Documents includes (y) the Purchase Price, as defined in the Stock Purchase Agreement, and the other terms set forth in the Transaction Documents, which constitute the best offer received for the PDVH Shares; and (z) the Sale Transaction on the terms set forth in the Transaction Documents presents an orderly sale of the PDVH Shares and the best opportunity to maximize the value of the PDVH Shares and

[5] The Transaction Documents shall not include that certain Transaction Support Agreement, dated August 12, 2025, by and among Amber Energy Inc. and certain PDVSA 2020 Bondholders party thereto (as amended, restated, supplemented, or otherwise modified from time to time, the "**Transaction Support Agreement**").

maximize distributions to the holders of Attached Judgments in respect of their interests in the PDVH Shares and the opportunity for recoveries to the Notice Parties, as applicable, including Crystallex, ConocoPhillips, and the Additional Judgment Creditors.

F. *Compliance with the Sale Procedures Order, December 2024 Order, Evaluation Criteria, April 2025 Scheduling Order, June 2025 Scheduling Order, and August 2025 Scheduling Order*. On October 11, 2022, this Court entered the *Sixth Revised Proposed Order (A) Establishing Sale and Bidding Procedures, (B) Approving Special Master's Report and Recommendation Regarding Proposed Sale Procedures Order, (C) Affirming Retention of Evercore as Investment Banker by Special Master and (D) Regarding Related Matters* [D.I. 481] approving the initial Bidding Procedures for the PDVH Shares. On December 31, 2024, this Court entered the December 2024 Order. On January 27, 2025, this Court entered a *Memorandum Order* [D.I. 1554] (the "**January 2025 Order**") which adopted evaluation criteria for Stalking Horse Bids, Base Bids, and Successful Bids (the "**Evaluation Criteria**"). On April 25, 2025, this Court entered the April Scheduling 2025 Order. On June 13, 2025, this Court entered the June 2025 Scheduling Order. On August 22, 2025, this Court entered the August 2025 Scheduling Order. The Bidding Procedures are substantively and procedurally fair, and non-collusive, and provided a full, fair, and reasonable opportunity for any entity or Person to make an offer to purchase the PDVH Shares. The Special Master complied with the Bidding Procedures, the Sale Procedures Order, the December 2024 Order, the April 2025 Scheduling Order, the June 2025 Scheduling Order, and the August 2025 Scheduling Order in all respects. Buyer complied with the Bidding Procedures, the Sale Procedures Order, the December 2024 Order, the April 2025 Scheduling Order, the June 2025 Scheduling Order, and the August 2025 Scheduling Order in all respects except as properly waived by the Special Master in the exercise of his duties to the Court in accordance with the Bidding

Procedures. Buyer subjected its bid to competitive bidding in accordance with the Bidding Procedures and was designated the Successful Bidder for the PDVH Shares. The Bidding Rounds were duly noticed and conducted fairly and in good faith, without collusion, and in accordance with the Sale Procedures Order and the Bidding Procedures. All potential bidders and other potentially interested parties have been afforded a full, fair, and reasonable opportunity to submit bids for the PDVH Shares and participate in the Bidding Rounds. The Special Master complied with the Evaluation Criteria.

G. *Marketing Process.* As demonstrated by the Recommendation, the Publication Affidavits, the testimony and other evidence proffered or adduced at the Sale Hearing, and the representations of counsel made on the record at the Sale Hearing: (i) the Special Master and his investment banker, Evercore Group L.L.C., engaged in a robust and extensive Marketing Process pursuant to the Sale Procedures Order, the Bidding Procedures, and the December 2024 Order; (ii) the Special Master and his Advisors, as defined in the Sale Procedures Order, conducted the Marketing Process in good faith and in a fair and open manner; (iii) the Marketing Process provided all potential bidders sufficient information to enable them to make an informed judgment on whether to make a bid to purchase the PDVH Shares and the terms of any such bid; (iv) the Marketing Process, the Bidding Procedures, and the Bidding Rounds were non-collusive, duly noticed, and provided a full, fair, and reasonable opportunity for any entity to conduct due diligence and make an offer to purchase the PDVH Shares and submit higher or better offers for the PDVH Shares than Buyer's bid; (v) the Special Master considered any and all bids submitted in good faith and in accordance with his duties under the Sale Procedures Order; (vi) the Special Master and Buyer have negotiated and undertaken their roles leading to the entry into the Stock Purchase Agreement in a diligent, non-collusive, fair, reasonable, and good faith manner; and

(vii) the Marketing Process conducted by the Special Master pursuant to the Sale Procedures Order and the Bidding Procedures obtained the best value for the PDVH Shares.

H. *Fair and Adequate Consideration; Best Value*. The consideration to be provided by Buyer under the Stock Purchase Agreement is fair, adequate, and reasonable consideration for the PDVH Shares and constitutes an adequate price for the purchase of the PDVH Shares under the terms of the Sale Procedures Order. Such consideration constitutes the best bid for the PDVH Shares. As a result, Buyer's bid represents the best opportunity to maximize distributions to the holders of Attached Judgments in respect of their interests in the PDVH Shares and the opportunity for recoveries to the Notice Parties, as applicable, including Crystallex, ConocoPhillips, and the Additional Judgment Creditors. Prompt approval of the Sale Transaction is the best means to preserve and maximize the value of the PDVH Shares and maximize distributions to Crystallex, ConocoPhillips, and the Additional Judgment Creditors. The total consideration to be provided by Buyer under the Transaction Documents reflects Buyer's reliance on each term and provision in this Order and in the Transaction Documents, and Buyer would not be willing to enter into the Transaction Documents or acquire the PDVH Shares without each and every protection set forth in the Transaction Documents and this Order, including in paragraphs I (*The Bidding and Sale Process Were Conducted in Good Faith*), J (*No Successor or Other Derivative Liability*), K (*The Shares Are Free and Clear of Any Claim, Lien, Interest, or Encumbrance*), L (*Necessary Condition*), M (*Validity of Transfer*), S (*Opportunity to Participate in Marketing Process*), 2 (*Objections Overruled*), 6 (*Consummation of Sale Transaction(s)*), 11 (*Transfer of PDVH Shares Free and Clear*), 13 (*Injunction*), 14 (*Release of Claims as to Buyer and other Entities; Recordation*), 15 (*Releases by Holders of Any Attached Judgments*), 19 (*No Successor or Other Derivative Liability*), and 23 (*Provisions Non-Severable*). The Transaction Documents were not entered into, nor is the Sale Transaction being consummated, for the purpose of hindering, delaying, or defrauding present or future creditors of PDVSA under the laws of the United States, any state, territory, possession, the District of Columbia, or otherwise, and none of the parties to the Transaction Documents nor any of their direct or indirect Affiliates[6] or subsidiaries is consummating the Sale Transaction for any other fraudulent or improper purpose.

I. *The Bidding and Sale Process Were Conducted in Good Faith*. The Transaction Documents and the Sale Transaction were negotiated, proposed, and entered into, and are being undertaken by the Special Master, Buyer, and the other parties to the Transaction Documents and their respective management, board of directors or equivalent governing body, officers, directors, employees, agents, members, managers, representatives, and advisors, in good faith, without collusion or fraud, and from arm's length bargaining positions, for fair consideration and fair value under the circumstances, and with representation by competent counsel of their choosing at all times. There has been no fraud, unfairness, surprise, or mistake, and the sale price is not so low as to shock the conscience. Likewise, the value to be paid by Buyer upon consummation of the Sale Transaction is the product of arm's length negotiations between the Special Master, Buyer, and the other parties to the Transaction Documents, and their respective representatives and advisors, in good faith and without collusion or fraud. Buyer has proceeded in good faith in all respects and at all times in that, among other things, (i) Buyer complied with the provisions of the Sale Procedures Order and Bidding Procedures, including compliance with confidentiality

[6] For the purposes of this Order, "**Affiliate**" means any Person (as defined in the Stock Purchase Agreement) that, directly or indirectly through one or more intermediaries, controls, or is controlled by, or is under common control with, such Person, and the term "control" (including the terms "controlled by" and "under common control with") means the possession, directly or indirectly, of the power to direct or cause the direction of the management and policies of such Person, whether through ownership of voting securities, by contract or otherwise.

obligations and restrictions under the Sale Procedures Order and the Bidding Procedures and any applicable non-disclosure or confidentiality agreement; (ii) Buyer's bid was subjected to competitive Bidding Procedures as set forth in the Sale Procedures Order; (iii) all consideration to be provided by Buyer and all other material agreements or arrangements entered into by Buyer and the Special Master in connection with the Sale Transaction have been disclosed and are appropriate; and (iv) the negotiation and execution of Transaction Documents were at arm's length and in good faith; as such, Buyer is entitled to all of the benefits, immunities, and protections afforded by applicable law. Other than agreements among the Special Master, Buyer, and any other parties as reflected in the Transaction Documents and herein, the Purchase Price in respect of the PDVH Shares was not controlled by any agreement, including any agreement among potential bidders. The Special Master, Buyer, and other parties to the Transaction Documents shall be, and shall be deemed to be, acting in good faith, and are authorized to close the Sale Transaction immediately upon entry of this Order (subject to issuance of an authorizing license by OFAC and satisfaction of any other conditions precedent in the Transaction Documents).

J. *No Successor or Other Derivative Liability*. Except as otherwise expressly provided herein or in the Transaction Documents, upon and after Closing, and to the greatest extent allowed by applicable law (whether in effect now or in the future), Buyer and Buyer Affiliates[7] shall not have any liability, or any other obligation, of or related to the Republic, PDVSA, or their respective Affiliates, including any liability or obligation arising under or related to the sale and transfer of the PDVH Shares to Buyer. Upon the closing, Buyer will not assume the liabilities of PDVSA. Buyer and Buyer Affiliates are not, and the consummation of the Sale Transaction will

[7] For the purposes of this Order, "**Buyer Affiliates**" means an Affiliate of Buyer; *provided*, *however*, that the term "Buyer Affiliate" shall exclude PDVH and any of its direct or indirect subsidiaries and their respective successors and assigns by merger or otherwise.

not render Buyer or Buyer Affiliates a continuation of or a mere continuation of, and Buyer is not holding itself out as a continuation of or a mere continuation of, the Republic, PDVSA or their enterprises or operations, and there is no continuity or common identity between Buyer and the Republic or PDVSA or their subsidiaries or Affiliates. Accordingly, the Sale Transaction does not amount to a consolidation, merger, de facto merger, acquisition of all or substantially all assets, or similar transaction of Buyer or Buyer Affiliates with or into the Republic or PDVSA, and Buyer, and Buyer Affiliates are not, and shall not be deemed, as a result of the consummation of the Sale Transaction, past practice, historical operations, course of dealing, or otherwise: (i) to be a successor to the Republic, PDVSA or their Affiliates, (ii) to be a continuation, a mere continuation or substantial continuation of the Republic, PDVSA or the enterprise(s) of the Republic, PDVSA or their Affiliates, or (iii) to be liable for, or be subject to any obligations relating to, any acts or omissions of the Republic, PDVSA, any of their Affiliates, or an insider of the Republic, PDVSA or any of their Affiliates in the conduct of their business or related to the PDVH Shares, including with respect to the Attached Judgments and any judgment whose holder sought to have such judgment be an Attached Judgment, other than as set forth in the Transaction Documents. Without limiting the generality of the foregoing, and except as otherwise provided in the Transaction Documents, Buyer and Buyer Affiliates shall not be liable for any Claims against PDVSA or any of its Affiliates, and Buyer and Buyer Affiliates shall have no successor or vicarious liability of any kind or character whatsoever, whether known or unknown as of the Closing, whether now existing or hereafter arising, whether asserted or unasserted, perfected or unperfected, liquidated or unliquidated, noticed or unnoticed, recorded or unrecorded, matured or unmatured, legal or equitable, non-contingent or contingent, or otherwise, with respect to the business operations of the Republic, PDVSA, their Affiliates, or the PDVH Shares. To the extent there are any perfected

Liens on the PDVH Shares, the same shall only attach to the proceeds of the Sale Transaction ultimately attributable to the property against which such perfected Liens applied or other specifically dedicated funds, in the same order of priority and with the same validity, force, and effect that such perfected Liens applied prior to the Sale Transaction, subject to any rights, claims, and defenses of PDVSA. Buyer would not have entered into the Transaction Documents and would not acquire the PDVH Shares but for the foregoing protections against potential claims against it based upon successor or similar liability, vicarious liability, or any other legal, equitable or other doctrine, whether existing now or in the future, and those protections' effectiveness. A sale of the PDVH Shares without the foregoing protections would yield substantially less value for Crystallex, ConocoPhillips, and the applicable Additional Judgment Creditors.

K. *The Shares Are Free and Clear of Any Claim, Lien, Interest, or Encumbrance*. Except as otherwise expressly provided herein, the Special Master is authorized and directed to sell the PDVH Shares to Buyer free and clear of any (i) right to a payment, whether or not such right is reduced to judgment, liquidated, unliquidated, fixed, contingent, matured, unmatured, disputed, undisputed, legal, equitable, secured, or unsecured, (ii) equitable remedy for breach of performance if such breach gives rise to a right to payment, whether or not such right to an equitable remedy is reduced to judgment, fixed, contingent, matured, unmatured, disputed, undisputed, secured or unsecured, and (iii) loss, liability, demand, claim, chose in action, any derivative vicarious, transferee, or successor or similar liability claims, rights, or causes of action, judgment, entitlement, residue, sanction, penalty, action, obligation, commitment, assessment, settlement, fee, debt, deficiency, guaranty of any kind, proceeding, damage, cost, or expense (including court costs and professional fees (including attorneys' fees and costs) whatsoever), whether at law or in equity, whether known or unknown, fixed, liquidated, contingent, or otherwise, whether under any theory of successor or transferee liability and whether imposed by agreement, understanding, law, or otherwise (a "**Claim**") and any mortgage, lien (whether consensual, statutory or arising under any Law), pledge, charge, security interest, financing statement, hypothecation, Preferential Right, easement, plot restriction, deed restriction, encumbrance of any kind, or other interest in property arising from an attachment, writ or other enforcement or execution of a judgment or Claim (a "**Lien**"). Following the Sale Transaction, the Notice Parties, as applicable, shall have no recourse against Buyer or Buyer Affiliates or against the PDVH Shares, on account of those parties' respective judgments or other Claims against the Republic, PDVSA, or their respective Affiliates.

L. *Necessary Condition*. Buyer would not have entered into the Transaction Documents and will not consummate the transactions contemplated thereby (i) if the sale of the PDVH Shares was not free and clear of all Claims and Liens, including any rights or Claims based on any successor, vicarious, or transferee liability, except as otherwise provided in the Transaction Documents; or (ii) if Buyer would, or in the future could, be liable for any such Claims and Liens. Failure to provide such relief in this Order would frustrate the Sale Procedures Order and the other orders of this Court in the Action. The total consideration to be provided under the Transaction Documents reflects Buyer's reliance on this Order to provide it with title to and possession of the PDVH Shares free and clear of all Claims. A sale of the PDVH Shares without the foregoing protections would yield substantially less value for Crystallex, ConocoPhillips, and the applicable Additional Judgment Creditors.

M. *Validity of Transfer*. The transfer of the PDVH Shares to Buyer will be a legal, valid, and effective transfer of the PDVH Shares, including for the purposes of Title 8 of the Delaware Code and Article 8 of Title 6 of the Delaware Code, and will vest Buyer with any legal, equitable and beneficial right, title, and interest of PDVSA in and to the PDVH Shares, free and clear of all Claims and Liens. The consummation of the Sale Transaction is legal, valid, and properly authorized under all applicable law, and all of the applicable requirements of applicable law have been complied with in respect of the Sale Transaction. Entities providing financing in connection with the Sale Transaction may rely in all respects on all of the provisions of this Order.

N. *Required Approval*. Buyer has demonstrated that (i) Buyer has made, or will make in a timely manner (a) all filings and disclosures necessary to comply with the regulations of OFAC and (b) all necessary filings under the Hart-Scott-Rodino Antitrust Improvements Act of 1976, as amended, and any other antitrust laws, as applicable, and pay the fees associated with such filings; (ii) Buyer has a plan and the ability to obtain or make all requisite shareholder, governmental, regulatory, or other third-party approvals, consents and notifications, (iii) the proposed timing to undertake the actions required to obtain or make such approvals, consents and notifications is reasonable; (iv) the Sale Transaction is reasonably likely, after taking into consideration antitrust and any other regulatory matters, Buyer's prior experience, Buyer's commitment to take all action necessary, proper or advisable for Buyer to consummate the Sale Transaction prior to the Closing Date, and any other relevant considerations, to be consummated within a time frame acceptable to the Special Master and the Court; and (v) Buyer has consented to the Special Master, in his discretion, sharing with U.S. Government regulators, including OFAC, information pertaining to the Sale Transaction.

O. *Sale Authority*. The Court has authority to sell the PDVH Shares to Buyer pursuant to, as applicable, (a) Rule 69(a) of the Federal Rules of Civil Procedure, (b) Section 324 of Title 8 of the Delaware Code, (c) Rule 53 of the Federal Rules, (d) the Court's general equitable powers to enforce its orders and judgments (*see Chambers v. NASCO, Inc.*, 501 U.S. 32, 43 (1991) (quoting *Link v. Wabash R. Co.*, 370 U.S. 626, 630–31 (1962)); *see also IFC Interconsult, AG v. Safeguard Int'l Partners, LLC*, 438 F.3d 298, 311 (3d Cir. 2006)), (e) the All Writs Act (*see United States v. N.Y. Tel. Co.*, 434 U.S. 159, 172 (1977) ("This Court has repeatedly recognized the power of a federal court to issue such commands under the All Writs Act as may be necessary or appropriate to effectuate and prevent the frustration of orders it has previously issued in its exercise of jurisdiction otherwise obtained . . . .")), and (f) 28 U.S.C. § 2004. The Court is in possession and control of the PDVH Shares, and, subject to authorization from OFAC, is authorized to sell, transfer, assign, convey, and deliver all title, interest, and/or rights of PDVSA in the PDVH Shares to Buyer, as required by the Stock Purchase Agreement, under applicable law.

P. *Sale Order Required by Buyer*. Entry of this Order approving the Stock Purchase Agreement is a requirement of the Stock Purchase Agreement and such requirement is an appropriate condition precedent to Buyer's consummation of the Sale Transaction.

Q. *Power and Authority*. The Special Master (i) has full power and authority to execute the Transaction Documents and (ii) has all of the power and authority necessary to consummate the transactions contemplated by the Transaction Documents. Upon entry of this Order, other than any consents identified in the Transaction Documents, the Special Master needs no consent or approval from any other Person to consummate the Sale Transaction.

R. *Binding Contract*. The Transaction Documents are valid and binding contracts among the Special Master and Buyer and shall be enforceable pursuant to their terms.

S. *Opportunity to Participate in Marketing Process*. This Action has been pending since June 19, 2017. In that time, this Action, the Marketing Process, and the Sale Transaction have received substantial national and international media coverage. The Court has held at least 21 public hearings and status conferences regarding the subject matter of the PDVH Shares, the claims against the Republic, PDVSA, and/or PDVH, and proceedings related thereto. The Marketing Process additionally conformed to the Notice Procedures laid out in the Sale Procedures Order, and gave notice to any parties that may have an interest in the PDVH Shares, including the Sales Process Parties, creditors of the Republic and/or PDVSA, potential bidders with interests in the PDVH Shares, and any other parties with any interests in the PDVH Shares. The Special Master, in accordance with the Sale Procedures Order, has published Sale Notices at least eight (8) times since the Launch Date, in at least four different publications. Each Sale Notice described the assets being sold (*i.e.*, the PDVH Shares), the Bidding Procedures, and the Marketing Process. The Sale Notices provided notice of key dates and deadlines for the Marketing Process, including, among other things, the Launch Date, the First Round Indication of Interest Deadline, the Second Round deadline to submit a Binding Bid, the stalking horse bid deadline, and the topping period deadline. In addition to the Sale Notices, all parties with a valid interest or perfected lien in the PDVH Shares have received notice from the Special Master of important Marketing Process and Sale Transaction-related milestones through a multitude of reports, motions, and notices submitted to the Court, as well as in regular, public, status conferences. Accordingly, Persons holding judgments or Claims against the Republic, PDVSA, and/or PDVH and all parties with an interest in the sale of the PDVH Shares have had sufficient notice of and an opportunity to participate in the Marketing Process. The failure of the holder of a judgment against, or other creditor of, the Republic, PDVSA and/or their Affiliates (whether now or in the future) to participate in the Marketing Process, to seek to become an Additional Judgment Creditor, or to successfully become an Additional Judgment Creditor shall not be grounds for challenging the Sale Transaction or this Order or to bring claims against Buyer or Buyer Affiliates whether existing now or in the future, and this Order shall be binding upon all such current or future creditors.

T. *Legal and Factual Bases*. The legal and factual bases set forth in the Recommendation, and at the Sale Hearing, establish just cause for the relief granted herein.

U. *Necessity of Order*. The Sale Transaction represents the best bid for the PDVH Shares and, without the relief in this Order, the Special Master does not believe the Marketing Process would yield such comparable value. The Special Master believes the Marketing Process provides the best opportunity to maximize the value of the PDVH Shares and maximize distributions thereon to the holders of Attached Judgments and the opportunity for recoveries to the Notice Parties, as applicable, including Crystallex, ConocoPhillips, and the Additional Judgment Creditors, and is not aware of a better alternative proposed by the Republic, PDVSA, PDVH, CITGO, or any other party.

IT IS HEREBY ORDERED THAT:

1. *Recommendation Is Adopted*. To the extent not already approved pursuant to the Sale Procedures Order, the Recommendation is adopted and the relief recommended therein is granted and approved as set forth herein.

2. *Objections Overruled*. Except in the case of objections described in [paragraphs [●] and [●] of this Order,] or as otherwise provided in this Order or in any subsequent Opinion or Order issued by the Court that modifies this Order, all objections, if any, and any and all joinders thereto, to the Recommendation, including the Special Master's proposed form of this Order or the relief granted herein that have not been previously overruled, withdrawn with prejudice, waived, or settled as announced to this Court at the Sale Hearing, by stipulation filed with this Court, or as provided in this Order, are hereby overruled on the merits and with prejudice. Parties who did not properly object to the entry of this Order in accordance with the Sale Procedures Order, or who withdrew their objections thereto, have, and are deemed to have waived any right to contest the relief granted herein in respect of the Sale Transaction and the Transaction

Documents for all purposes. All holders of liens, claims, interests, and encumbrances against the PDVH Shares who did not object, or withdrew their objections to the Sale Transaction are likewise deemed to have waived any such rights. To the extent there are any perfected Liens on the PDVH Shares, the same shall only attach to the proceeds of the Sale Transaction ultimately attributable to the property against which such perfected Liens applied or other specifically dedicated funds, in the same order of priority and with the same validity, force, and effect that such perfected Liens applied prior to the Sale Transaction, subject to any rights, claims, and defenses of PDVSA.

3. *Notice*. Notice of the Recommendation, the Bidding Rounds, the Bidding Procedures, the Sale Transaction, and the Sale Hearing was adequate, appropriate, fair and equitable under the circumstances and complied in all respects with the Sale Procedures Order and the Bidding Procedures.

4. *Fair and Adequate Purchase Price*. The consideration to be provided by Buyer under the Stock Purchase Agreement is fair, adequate, and reasonable consideration for the PDVH Shares and constitutes (i) fair consideration and fair value under any other applicable laws of the United States, any state, territory or possession or the District of Columbia and any other applicable law and (ii) an adequate price for the purchase of the PDVH Shares under the circumstances of this Action and the terms of the Sale Procedures Order. Such consideration constitutes the best bid for the PDVH Shares.

5. *Approval of the Transaction Documents*. Except as otherwise provided herein, the Transaction Documents, including all of the transactions contemplated thereby, including, without limitation, the Debt Financing and documents related thereto and all of the terms and conditions

thereof, are hereby authorized and approved in their entirety.[8] The failure specifically to include any particular provision of the Transaction Documents in this Order shall not diminish or impair the effectiveness of such provision, it being the intent of this Court that the Transaction Documents, and the entry into the Transaction Documents by the Special Master, be authorized and approved in their entirety except as otherwise provided herein.

6. *Consummation of Sale Transaction(s)*. Pursuant to applicable law, and subject to authorization from OFAC, the Court is authorized and empowered to transfer the PDVH Shares in accordance with the terms of the Transaction Documents and the terms of this Order. The Special Master, his Advisors and agents, are authorized and directed to execute, deliver, and perform their obligations under and comply with the terms of the Transaction Documents and to consummate the Sale Transaction, including by taking any and all actions as may be reasonably necessary or desirable to implement the Sale Transaction and each of the transactions contemplated thereby pursuant to and in accordance with the terms and conditions of the Transaction Documents and this Order without leave of Court. All Interested Parties and any Persons or entities acting in concert with them are prohibited and enjoined from taking any action that adversely affects, interferes with, is likely to frustrate or is in any way inconsistent with the ability of the Special Master or his Advisors and agents to transfer the PDVH Shares to Buyer in accordance with the Stock Purchase Agreement and this Order, subject to Paragraph 28 hereof, and, *provided* that, the foregoing restriction shall not prevent any Person or entity from exercising any rights granted or preserved by this Order (including Paragraph 28 hereof); *provided*, *further*, that the foregoing restriction in this sentence shall not apply to any act of a United States regulatory agency required

[8] For the avoidance of doubt, in this Order this Court is not approving or authorizing the Transaction Support Agreement which is by and among Amber Energy Inc. and certain PDVSA 2020 Bondholders.

to implement the Sale Transaction. For the avoidance of doubt, the foregoing restrictions shall not prevent any party in *G&A Strategic Investments I LLC v. PDVSA*, Case No. 1:23-cv-10766-JSR (S.D.N.Y.), or their Affiliates or successors and assigns, from prosecuting or defending the claims asserted therein, including in connection with any associated appeal, or in seeking to enforce, or defending against such enforcement, any Claim against the assets of PDVH or any of its direct or indirect subsidiaries, including by merger or otherwise. PDVH, CITGO and each of their direct and indirect subsidiaries, representatives, employees, agents, designees, successors, or assigns (collectively, the "**CITGO Related Parties**") are directed and hereby ordered to comply with the obligations and covenants applicable to PDVH, CITGO and to any CITGO Related Parties set forth in the following sections of the Stock Purchase Agreement (regardless of, and independent of, any obligation for the Special Master to "cause" those parties to comply with such obligations and covenants) and the Special Master is authorized to seek this Court's assistance and/or an order from the Court to compel compliance if, in his reasonable judgment, any of PDVH, CITGO or the CITGO Related Parties fails to comply with such obligations and covenants: Section 2.3 (*Closing Deliveries of the Parties*), Section 6.1 (*Conduct of the Business Pending the Closing*), Section 6.2 (*Access to Information*), Section 6.3 (*Regulatory Approvals; Third Party Consents*), Section 6.7 (*Public Announcements*), Section 6.8 (*Employee Matters*), Section 6.10 (*Company's Obligations in Respect of Debt Financing*), Section 6.11 (*Tax Matters*), Section 6.13 (*Notices of Certain Events*), Section 6.17 (*280G*) and Section 6.18 (*Financial Statements*). Any failure by PDVH, CITGO or the CITGO Related Parties to comply with any obligation or covenant contained in the Stock Purchase Agreement and referenced in the immediately preceding sentence may result in a contempt order and appropriate sanctions against the violating entity, as well as the individual directors, officers or employees responsible for the violation.

7. *Execution of Transaction Documents*. The Special Master, his Advisors and agents, are authorized to execute and deliver, and authorized to perform under, consummate, and implement all additional notices, assumptions, conveyances, releases, acquittances, instruments, and documents that may be reasonably necessary or desirable to implement the Transaction Documents, including the transfer and, as applicable, the assignment of all the PDVH Shares, and to take all further actions as may be (i) reasonably requested by Buyer for the purpose of assigning, transferring, granting, conveying, and conferring to Buyer, or reducing to Buyer's possession, the PDVH Shares and/or (ii) necessary or appropriate to the performance of the obligations contemplated by the Transaction Documents, all without further order of this Court.

8. *Payment of Transaction Expenses*. The Special Master shall continue to file periodic status reports requesting the Court's approval of the Special Master's Transaction Expenses. Any approved but unpaid Transaction Expenses as of the Closing shall be paid to the Special Master from the proceeds of the Sale Transaction prior to any distributions on account of Attached Judgments.

9. *Special Master Expense Reserve Holdback.* The Special Master shall be entitled to direct a portion of the sale proceeds, in an amount reasonably determined by the Special Master and approved by the Court prior to the closing of the Sale Transaction, to be deposited into an escrow account for the purpose of paying any out-of-pocket costs, fees, or expenses incurred by the Special Master on or after the closing of the Sale Transaction for the Special Master, investment bankers, third party consultants, legal counsel and any other Representatives (as defined in the Stock Purchase Agreement) or Advisors (as defined in the Sale Procedures Order) and approved by the Court, including any fees or expenses related to implementation, indemnification or reimbursement for any liability, legal costs, or court costs, or any further adjudication, of the Sale

Transaction or this Order. Any such amounts remaining in escrow after all such costs, fees and expenses incurred by the Special Master have been so paid or distributed shall be paid to the Additional Judgment Creditors in compliance with the Final Priority Order, this Order, and any further order of the Court deemed necessary by the Special Master.

10. *Document Acceptance*. Each and every federal, state, local, or foreign government or governmental or regulatory authority, agency, board, bureau, commission, court, department, or other governmental entity is hereby authorized to accept any and all documents and instruments necessary and appropriate to consummate the transactions contemplated by the Transaction Documents.

11. *Transfer of PDVH Shares Free and Clear*. Pursuant to applicable law, and subject to authorization from OFAC, the Special Master is authorized and directed to transfer the PDVH Shares in accordance with the terms of the Stock Purchase Agreement and this Order. The transfer of the PDVH Shares by the Special Master to Buyer in accordance with the Stock Purchase Agreement and this Order shall: (i) be valid, legal, binding, and effective; (ii) vest Buyer with all right, title, and interest in and to the PDVH Shares; and (iii) be free and clear of all Claims and Liens against the PDVH Shares, except as otherwise provided in the Transaction Documents. Following the consummation of the Sale Transaction, the Notice Parties shall have no recourse against Buyer or Buyer Affiliates, or against the PDVH Shares, on account of those parties' respective judgments or other Claims against the Republic, PDVSA or their respective Affiliates. On the Closing Date, this Order shall be considered, and shall constitute, for any and all purposes, a full and complete general assignment, conveyance and transfer of the PDVH Shares, transferring good and marketable and indefeasible title and interest in all of the PDVH Shares to Buyer with effect at Closing of the Sale Transaction in accordance with the Transaction Documents. The

provisions of this Order authorizing and approving the transfer of the PDVH Shares free and clear of all interests shall be self-executing, and neither the Special Master or Buyer shall be required to execute or file releases, termination statements, assignments, consents or other instruments in order to effectuate, consummate and implementation the provisions of this Order and the Stock Purchase Agreement.

12. *Endorsement of Certificates; Registration of Transfer*. The Special Master is authorized and directed to execute on behalf of PDVSA and deliver to Buyer, at Closing, the stock certificates representing the PDVH Shares duly endorsed in blank and any executed stock powers or other instruments of transfer necessary to transfer to Buyer good and marketable title to the PDVH Shares and otherwise proceed with the Sale Transaction. PDVH is directed, at Closing, to register the transfer of the PDVH Shares to Buyer upon the books and records of PDVH. Following the Closing, the sale of the PDVH Shares to Buyer shall be, and shall be deemed to be, "made and confirmed" as contemplated by Section 324 of Title 8 of the Delaware Code and, upon a certified copy of this Order being left with any officer or director or with the registered agent of PDVH, Buyer shall be entitled to the PDVH Shares and all income, or dividends which may have been declared, or become payable thereon since the attachment laid, subject to the terms of the Stock Purchase Agreement.

13. [**Supporting Parties' Proposed Language**] *Injunction*. The Republic, PDVSA, PDVH, CITGO, Crystallex, ConocoPhillips, any party with an Attached Judgment, including the Additional Judgment Creditors, and any Affiliate or successor or assignee of the aforementioned parties, who may or do hold, now or in the future, Claims against the Republic, PDVSA, or the PDVH Shares, arising under or out of, in connection with, or in any way relating to, the Republic, PDVSA, the PDVH Shares prior to the Closing, the operation of PDVH or ownership of the PDVH **Obj. 1**

Shares by PDVSA in each case prior to the Closing, or the Sale Transaction, are hereby forever barred, estopped, and permanently enjoined from asserting or pursuing such Claims against Buyer, Buyer Affiliates, or any of their respective successors or assigns, or against the PDVH Shares.

13. [**Venezuela Parties' Proposed Language**] *Injunction.* [The Venezuela Parties propose deleting this paragraph in its entirety.] **Obj. 1**

14. *Release of Claims as to Buyer and other Entities; Recordation*. Except as expressly set forth in the Stock Purchase Agreement, the Transaction Documents, or this Order, this Order (i) shall be effective as a determination that, as of the Closing, all Claims, including all Attached Judgments that have been paid or credit bid, have been unconditionally released, discharged in full or, with respect to any Attached Judgment that is extinguished in part, discharged in part and terminated as to Buyer, Buyer Affiliates, and the PDVH Shares, and that the conveyances and transfers described herein and in the Stock Purchase Agreement and the Transaction Documents have been effected, and (ii) is and shall be binding upon and govern the acts of all Persons, including all filing agents, filing officers, title agents, title companies, recorders of mortgages, recorders of deeds, registrars of deeds, administrative agencies, governmental departments, secretaries of state, federal, state, county and local officials and all other Persons who may be required by operation of law, the duties of their office, or contract, to accept, file, register or otherwise record or release any documents or instruments that reflect that Buyer is the assignee and owner of the PDVH Shares, free and clear of all Claims, or who may be required to report or insure any title or state of title in or to any lease (all such entities being referred to as "**Recording Officers**"). All Recording Officers are authorized to strike recorded encumbrances, claims, liens, and other interests against the PDVH Shares recorded prior to the date of this Order. A certified copy of this Order may be filed with the appropriate Recording Officers to evidence cancellation

of any recorded encumbrances, claims, liens, pledges, and other interests against the PDVH Shares recorded prior to the date of this Order. All Recording Officers are hereby authorized to accept for filing any and all of the documents and instruments necessary, advisable or appropriate, and appropriate to consummate the transactions contemplated by the Stock Purchase Agreement.

15. *Releases by Holders of Any Attached Judgments*. Immediately upon the later of (i) the indefeasible receipt by a holder of an Attached Judgment of an amount sufficient to satisfy its Attached Judgment based upon the available proceeds from the Sale Transaction (the "**Sale Proceeds**") or (ii) the Closing, the holder of an Attached Judgment (a) shall have, and shall be deemed to have, automatically released all of the security interests, liens and pledges, including its Attached Judgment, as defined in the Stock Purchase Agreement, and any other Claims on the PDVH Shares securing the Attached Judgment with no further action (the "**Lien Release**"), whether or not the holder's Attached Judgment was satisfied in full or at all from the Sale Proceeds, and (b) is authorized and directed to take any such actions as may be reasonably requested by the Court to evidence the release of such security interests, liens and pledges, including the execution, delivery and filing or recording of such releases as may be reasonably requested by the Court or Buyer or as may be required in order to terminate any related financing statements, mortgages, mechanic's liens, or *lis pendens*. This Order is, and shall be deemed to be, in recordable form sufficient to be placed in the filing or recording system of each and every federal, state, or local government agency, department, or office.

16. *Licenses*. In accordance with the Sale Procedures Order and the Bidding Procedures, Buyer shall obtain all required permit(s), license(s), registration(s), governmental authorization(s) or approval(s) or similar grant(s), including pursuant to the Hart-Scott-Rodino Act and any other applicable antitrust laws and all licenses required by OFAC relating to the transfer

or conveyance of the PDVH Shares to Buyer under the Stock Purchase Agreement and the Transaction Documents, within a customary amount of time. Buyer and its legal counsel and advisors shall coordinate in good faith with the Special Master's Advisors to discuss and explain Buyer's regulatory and other consent analysis, strategy, and timeline for securing all such approvals and consents in accordance with the terms of the Stock Purchase Agreement to facilitate the timely Closing of the Sale Transaction.

17. *Distribution and Application of Sale Proceeds.* In accordance with the Transaction Documents, prior to the Closing, the Special Master and his Advisors shall provide to Acquiom Financial LLC, a Colorado limited liability company, in its capacity as payments administrator (the "**Paying Agent**"), a spreadsheet pursuant to that certain Payments Administration Agreement, to be executed before the entry of this Order, by and among Buyer, the Special Master and the Paying Agent, which shall indicate, among other things, that, at the Closing, Buyer will pay the Closing Consideration (as defined in the Stock Purchase Agreement) to the Paying Agent, and the Paying Agent will pay to:

i. the Special Master and his Advisors, any approved but unpaid Transaction Expenses as of the Closing;

ii. the Sale Process Parties and the Additional Judgment Creditors, any Transaction Expenses paid as of Closing; and

iii. the holders of any Attached Judgments, in accordance with the terms of the Stock Purchase Agreement and the Final Priority Order.

The remaining sale proceeds will be distributed in accordance with the terms of the Stock Purchase Agreement and other Transaction Documents. Following the payments provided for in this paragraph, all Liens that existed prior to Closing in or on the PDVH Shares shall attach to the remaining proceeds of the Sale Transaction in the same order of priority and with the same extent, validity, force, and effect that such Liens had prior to the Sale Transaction.

Gold Reserve's Obj.

18. [**Supporting Parties' Proposed Language**] *Obligation to Report Recovery on Attached Judgments; Amendment to Attached Judgment Amount Schedule and Impact on Payments to holders of Attached Judgments.* If, prior to Closing, a holder of an Attached Judgment receives any payment or consideration in connection with or in respect of an Attached Judgment, the holder of an Attached Judgment shall promptly (but in no event later than within 3 business days) so notify the Court and Special Master by filing notice of the same on the public docket. This notice shall include the amount (the "**Alternative Recovery Amount**"). In this event, the Attached Judgment shall be reduced by the Alternative Recovery Amount, and the corresponding amount that otherwise would have been paid to the holder of an Attached Judgment under the terms of the Stock Purchase Agreement and Final Priority Order shall instead be paid to satisfy other Attached Judgments in accordance with the Final Priority Order. The Special Master shall thus revise the amounts payable to holders of Attached Judgments (the "**Revised Attached Judgment Amount Schedule**") to deduct the amount of such payment or consideration from the amount of that Attached Judgment, and shall promptly (but in no event later than within 5 business days after the filing of the notice by the holder of an Attached Judgment) file the Revised Attached Judgment Amount Schedule on the public docket and, if the Revised Attached Judgment Amount Schedule has not already been provided to the Paying Agent, also provide the Revised Attached Judgment Amount Schedule to the Paying Agent. In no event shall the filing of any such notice by a holder of an Attached Judgment delay or prevent the Closing. If the Closing occurs prior to the filing of the Revised Attached Judgment Amount Schedule, then the Alternative Recovery Amount(s) shall be retained by the Paying Agent and paid out in accordance with

the Revised Attached Judgment Amount Schedule promptly after such Revised Attached Judgment Amount Schedule is filed.

Gold Reserve's Obj.

18. [**Gold Reserve's Proposed Language**] *Obligation to Report Recovery on Attached Judgments; Amendment to Attached Judgment Amount Schedule and Impact on Payments to holders of Attached Judgments.* If, prior to Closing, a holder of an Attached Judgment receives or otherwise becomes entitled, by entry of a court order , settlement, or otherwise, to receive any payment or consideration in connection with or in respect of an Attached Judgment, the holder of an Attached Judgment shall promptly (but in no event later than within 3 business days) so notify the Court and Special Master by filing notice of the same on the public docket. This notice shall include the amount (the "**Alternative Recovery Amount**"), the source of such payment or consideration, the expected payment date, and the amount of the Attached Judgment that is satisfied by the Alternative Recovery Amount (the "**Attached Judgment Reduction Amount**"). In this event, the Attached Judgment shall be reduced by the Attached Judgment Reduction Amount, and the amount that otherwise would have been paid to the holder of an Attached Judgment under the terms of the Stock Purchase Agreement and Final Priority Order shall instead be paid to satisfy other Attached Judgments in accordance with the Final Priority Order. The Special Master shall thus revise the amounts payable to holders of Attached Judgments (the "**Revised Attached Judgment Amount Schedule**") to deduct the Attached Judgment Reduction Amount from the amount of that Attached Judgment, and shall promptly (but in no event later than within 5 business days after the filing of the notice by the holder of an Attached Judgment) file the Revised Attached Judgment Amount Schedule on the public docket and, if the Revised Attached Judgment Amount Schedule has not already been provided to the Paying Agent, also provide the Revised Attached Judgment Amount Schedule to the Paying Agent. In no event

shall the filing of any such notice by a holder of an Attached Judgment delay or prevent the Closing. If the Closing occurs prior to the filing of the Revised Attached Judgment Amount Schedule, then the Alternative Recovery Amount(s) shall be retained by the Paying Agent and paid out in accordance with the Revised Attached Judgment Amount Schedule promptly after such Revised Attached Judgment Amount Schedule is filed.

19. *No Successor or Other Derivative Liability*. Neither Buyer nor any of Buyer Affiliates shall be deemed by virtue of the Sale Transaction to have effected a consolidation, merger, or de facto merger of Buyer and any of Buyer Affiliates with or into PDVSA and Buyer and Buyer Affiliates are not, and shall not be deemed, as a result of the consummation of the Sale Transaction: (i) to be a successor to PDVSA, (ii) to be an alter ego or a mere continuation or substantial continuation or a successor in any respect of PDVSA, including within the meaning of any foreign, federal, state or local law, or (iii) to be liable for, or be subject to any obligations relating to, any acts or omissions of PDVSA in the conduct of its business or arising under or related to the PDVH Shares, other than as set forth in the Stock Purchase Agreement. To the maximum extent available under applicable law, Buyer's acquisition of the PDVH Shares shall be free and clear of any successor or similar liability claims and other types of transferee liability of any kind or character whatsoever, whether known or unknown, whether now existing or hereafter arising, whether asserted or unasserted, or whether fixed or contingent at the time of the Closing. The operations of Buyer and Buyer Affiliates shall not be deemed a continuation of PDVSA's business operations, the PDVH Shares, or any Liabilities of PDVSA as a result of the acquisition of the PDVH Shares. Following consummation of the Sale Transaction, the Notice Parties shall have no recourse against Buyer or Buyer Affiliates, or against the PDVH Shares, on account of those parties' respective judgments or other Claims against the Republic or PDVSA. The

consideration given by Buyer shall constitute valid and valuable consideration for the foregoing releases of any potential successor or similar liability claims and other types of transferee liability of any kind or character whatsoever, which releases shall be deemed to have been given in favor of Buyer by all holders of such claims.

20. [**Supporting Parties' Proposed Language**] *Judicial Immunity & Exculpation*. The Special Master is entitled to judicial immunity in the performance of his duties as authorized by the Special Master Order, the Sale Procedures Order, the Bidding Procedures, and this Order, including implementation of the Sale Transaction. The Special Master's Advisors are entitled to judicial immunity in connection with all actions taken at the direction of, on behalf of, or otherwise in connection with representation of, or advising, the Special Master. No Person or entity, including Buyer, shall be permitted to pursue any cause of action or commence or prosecute any suit or proceeding against the Special Master or the Advisors, or their respective employees, officers, directors, attorneys, auditors, representatives, agents, successors or assigns, for any reason whatsoever relating to this Action, implementation of the Sale Procedures, or in connection with the Sale Transaction, or the performance of the Special Master's and his Advisors' duties pursuant to this Order or any other orders of the Court, or any act or omission by the Special Master or any Advisor in connection with the foregoing. All interested Persons and entities, including but not limited to the Sale Process Parties, any holder of an Attached Judgment, any Potential Bidder or Buyer, and all Persons acting in concert with them, are hereby enjoined and restrained from pursuing any such cause of action or commencing any such action or proceeding. If any Person or entity attempts to pursue any such cause of action or commence any suit or proceeding against the Special Master or any of the Advisors with knowledge of this Order (or continues to pursue or prosecute any cause of action, suit or proceeding after having received notice of this Order), the **Obj. 4**

Court shall issue an order to show cause to such Person or entity and a hearing will be scheduled to consider appropriate relief, which may include payment of fees and expenses incurred by the Special Master or any of the Advisors in connection therewith. To the maximum extent permitted by applicable law, neither the Special Master nor his Advisors nor their respective employees, officers, directors, attorneys, auditors, representatives, agents, successors and assigns will have or incur, and are hereby released and exculpated from, any claim, obligation, suit, judgment, damage, demand, debt, right, cause of action, remedy, loss, and liability for any claim in connection with or arising out of all actions taken to implement the Marketing Process, Sale Procedures, Bidding Procedures, or Sale Transaction, or the performance of the Special Master's and his Advisors' duties pursuant to this Order and all other orders of the Court. **Obj. 4**

20. [**Venezuela Parties' Proposed Language**] *Judicial Immunity & Exculpation*. The Special Master is entitled to judicial immunity in the performance of his duties as authorized by the Special Master Order, the Sale Procedures Order, the Bidding Procedures, and this Order, including implementation of the Sale Transaction. The Special Master's Advisors are entitled to judicial immunity in connection with all actions taken at the direction of, on behalf of, or otherwise in connection with representation of, or advising, the Special Master.

21. *Modification of Stock Purchase Agreement*. Subject to the terms of the Transaction Documents, including the Stock Purchase Agreement, and any related agreements, documents, or other instruments, the Transaction Documents may be modified, amended, or supplemented by the parties thereto, in a writing signed by the party against whom enforcement of any such modification, amendment, or supplement is sought, and in accordance with the terms thereof, without further order of this Court; *provided*, that any proposed material modification, amendment or supplement to the Transaction Documents shall be served on the Interested Parties and the

PDVSA 2020 Bondholders, at least three (3) business days' prior to its proposed execution and, if objected to by any Interested Parties and/or the PDVSA 2020 Bondholder Parties, shall be subject to further Court order absent an agreement of the parties thereto and an objecting party.

22. *Conflicts; Precedence*. In the event that there is a direct conflict between the terms of this Order and the terms of the Transaction Documents, the terms of this Order shall control. The failure to specify or include any particular provisions of the Stock Purchase Agreement or the Transaction Documents in this Order shall not diminish or impair the effectiveness of such provisions, it being the intent of this Court that the Stock Purchase Agreement, the Transaction Documents, and the Sale Transaction be authorized and approved in their entirety.

23. *Provisions Non-Severable*. The transactions contemplated under the Transaction Documents (including the Sale Transaction) and in this Order are inextricably linked and collectively constitute a single, integrated transaction, and each provision of the Transaction Documents is incorporated into and part of this Order as if fully set forth herein. Buyer would not have entered into the Transaction Documents and would not acquire the PDVH Shares but for its reliance on each term and provision in this Order and in the Transaction Documents being valid and enforceable pursuant to its terms. The total consideration to be provided by Buyer under the Transaction Documents reflects Buyer's reliance on each term and provision in this Order and in the Transaction Documents. As such, each term and provision in this Order and in the Transaction Documents is integral to the Sale Transaction, nonseverable and mutually dependent.

24. *Retention of Jurisdiction*. This Court shall retain jurisdiction to, among other things, (i) interpret, enforce, and implement the terms and provisions of this Order and the Stock Purchase Agreement (including all amendments thereto, any waivers and consents thereunder, and of each of the agreements executed in connection therewith) and (ii) adjudicate disputes related to

this Order and the Stock Purchase Agreement (including all amendments thereto, any waivers and consents thereunder, and of each of the agreements executed in connection therewith).

25. *Effectiveness of Order*. This Order shall become effective and enforceable immediately upon its entry and its provisions shall be self-executing.

26. *Preservation of Post-Closing Rights*. Except as otherwise provided herein, this Order shall not prevent any Person from seeking to enforce a Claim for post-Closing conduct by Buyer or Buyer Affiliates.

27. *Preservation of Rights and Remedies*. Nothing in this Order or the Stock Purchase Agreement shall: (a) prevent any party from seeking or opposing an appeal or writ, or a stay pending appeal, of this Order or any other order, finding or determination, including any Sales Process Order, in each case in accordance with applicable law and in a court of competent jurisdiction; (b) prohibit any of the Venezuela Parties or any Persons or entities acting in concert with them from proposing an alternative to the sale of the PDVH Shares prior to consummation of a sale; or (c) prohibit any of the Venezuela Parties or any Persons or entities acting in concert with them from communicating with or advocating before any part of any government or representative thereof.

28. *Reservation of Rights Regarding Transaction Support Agreement, 2020s Notes Indenture, and 2020s Notes Pledge Agreement*. For the avoidance of doubt, this Order does not modify or amend any rights or obligations of any party arising under (i) the Transaction Support Agreement; (ii) that certain Indenture, dated as of October 27, 2016, among PDVSA as issuer; PDVSA Petróleo, S.A., as guarantor; MUFG Union Bank, N.A. as trustee (the "**2020s Trustee**"); GLAS Americas LLC, as collateral agent (the "**2020s Collateral Agent**"); Law Debenture Trust Company of New York as registrar, transfer agent, and principal paying agent; and Banque

Internationale à Luxembourg, Société Anonyme, as Luxembourg listing agent and paying agent (the "**2020 Notes Indenture**"); (iii) that certain Pledge and Security Agreement, dated as of October 28, 2016, among PDVSA as issuer; Petróleo, as guarantor; the 2020s Trustee; and the 2020s Collateral Agent (the "**2020 Notes Pledge Agreement**"); or (iv) any other Transaction Document (as defined in the 2020 Notes Indenture). All rights under the Transaction Support Agreement, 2020s Notes Indenture, the 2020 Notes Pledge Agreement, and all other Transaction Documents (as defined in the 2020 Notes Indenture) are reserved.

29. *2020s Notes Undertaking*. Buyer will comply with the Amber Energy 2020s Notes Extinguishment Undertaking filed by the court at [D.I.[●]].

Exhibit A

Stock Purchase Agreement

Exhibit B

Publication Affidavits

Exhibit [C]

[Fourth Revised Proposed Sale Order vs. Third Revised Proposed Sale Order]

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF DELAWARE

CRYSTALLEX INTERNATIONAL CORP., Plaintiff, v. BOLIVARIAN REPUBLIC OF VENEZUELA, Defendant.	Misc. No. 17-151-LPS

ORDER (I) APPROVING STOCK PURCHASE AGREEMENT, (II) AUTHORIZING SALE OF THE PDVH SHARES FREE AND CLEAR OF LIENS, CLAIMS, ENCUMBRANCES, AND OTHER INTERESTS, AND (III) GRANTING RELATED RELIEF[1]

Upon the updated recommendation, dated August 29, 2025 (the "**Recommendation**"),~~[1]~~[2] of Robert B. Pincus, in his capacity as Special Master for the United States District Court for the District of Delaware (the "**Special Master**") in the above captioned case (the "**Action**"), recommending entry of an order authorizing and approving the sale of the PDVH Shares pursuant to~~, among other things, 28 U.S.C. § 2004, Rules 53 and 69 of the Federal Rules of Civil Procedure, Section 324 of Title 8 of the Delaware Code, the Court's equitable powers to enforce its orders and judgments, and the All Writs Act~~ applicable law; and this Court having taken into consideration this Court's prior orders, including the *Order Regarding Special Master* [D.I. 277]

[1] Pursuant to the Court's Order on November 18, 2025 (D.I. 2535), The Venezuela Parties alternative proposed language is identified in yellow highlight. The Supporting Parties' (as defined in Exhibit A) alternative proposed language is identified in blue highlight. Gold Reserve's alternative proposed language is identified in green highlight.

~~[1]~~[2] Capitalized terms used but not herein defined shall have the meanings ascribed to such terms in the Sale Procedures Order, the Recommendation or the Stock Purchase Agreement (each as herein defined), as applicable and as context may require.

(the "**Special Master Order**"), the *Memorandum Order* [D.I. 646], the *Final Priority Order* [D.I. 1102] (the "**Final Priority Order**"), and the *Sixth Revised Proposed Order (A) Establishing Sale and Bidding Procedures, (B) Approving Special Master's Report and Recommendation Regarding Proposed Sale Procedures Order, (C) Affirming Retention of Evercore as Investment Banker by Special Master and (D) Regarding Related Matters* [D.I. 481], (the "**Sale Procedures Order**", and the bidding procedures for the sale of the PDVH Shares approved thereby, the "**Bidding Procedures**"); the *Memorandum Order Regarding Sale Process and Litigation* [D.I. 1517] (the "**December 2024 Order**"), the *Order* [D.I. 1741] designating Red Tree Investments, LLC as the Stalking Horse (the "**Stalking Horse Order**"), and the *Order Regarding Schedule for the Remainder of the Marketing Process* [D.I. 1745] (the "**April 2025 Scheduling Order**"), the *Order* entering a schedule proposed by the Special Master [D.I. 1809] (the "**June 2025 Scheduling Order**"), the *Order* [D.I. 2056] continuing the Sale Hearing previously scheduled for August 18, 2025, and the *Scheduling Order* [D.I. 2110] (the "**August 2025 Scheduling Order**") setting the continued hearing to commence September 15, 2025 and providing for the submission of best and final unsolicited bids by August 22, 2025 (all such orders, collectively, the "**Sales Process Orders**"); and four solicited rounds of bidding (the "**Bidding Rounds**") having been held for the consideration of Qualified Bids and the selection of a Successful Bidder (each as defined in the Sale Procedures Order and the Bidding Procedures); and Buyer[~~2~~3] having submitted the best bid for the PDVH Shares and having been

[~~2~~3] For the purposes of this Order, "**Buyer**" means Amber MSub LLC (together with its permitted assigns pursuant to Section 9.10 of the Stock Purchase Agreement (as defined below)); *provided*, *however*, that from and after the Closing, the term Buyer shall exclude PDVH and any of its direct or indirect subsidiaries and their respective successors and assigns by merger or otherwise.

recommended as the Successful Bidder by the Special Master with respect to the PDVH Shares; and this Court having conducted a hearing commencing September 15, 2025 (the "**Sale Hearing**") to consider the Sale Transaction (as defined herein), during which time all interested parties were offered an opportunity to be heard with respect to the Recommendation; and this Court having reviewed and considered (i) the Recommendation and the exhibits thereto; (ii) the Buyer's materials submitted in support of its bid, including[~~3~~4] the Stock Purchase Agreement, dated as of September 19, 2025 (together with the exhibits thereto, as may be amended, modified, or supplemented from time to time in accordance with the terms thereof, the "**Stock Purchase Agreement**") attached as **Exhibit A** hereto, by and among the Special Master and Buyer, whereby the Special Master, at the direction of the Court, has agreed to, among other things, sell or cause to be sold the PDVH Shares to Buyer, on the terms and conditions set forth in the Stock Purchase Agreement (the "**Sale Transaction**"); (iii) the notarized affirmations of publication attached hereto as **Exhibit B** (collectively, the "**Publication Affidavits**"); and (iv) the arguments of counsel made, and the evidence therein proffered or adduced at the Sale Hearing; and due notice of the Recommendation, the Sale Hearing, and the form of this Order having been provided; and all objections to the Sale Transaction and the Order having been withdrawn, resolved, or overruled [except as otherwise provided herein or as provided in any subsequent Opinion or Order issued by the Court that modifies this Order]; and it appearing that the relief granted herein is consistent with the directives of the Sale Procedures Order; and upon the record of the Sale Hearing and this Action; and after due deliberation and sufficient cause appearing therefor;

[~~3~~4] The term "including," wherever it is used in this Order, means "including, without limitation."

IT IS HEREBY FOUND AND DETERMINED THAT:

A. *Jurisdiction and Venue*. The Court has jurisdiction to grant the relief recommended in the Recommendation pursuant to 28 U.S.C. §§ 1330, 1367, and 1605(a)(6) and its ancillary jurisdiction to enforce federal judgments. Venue is proper before the Court pursuant to 28 U.S.C. § 1963. Further, the Court has jurisdiction over the Additional Judgment Creditors (as defined in the Sale Procedures Order and as set forth in the Final Priority Order) and all other interested parties appearing in this proceeding pursuant to 28 U.S.C. § 1367 and over Crystallex International Corporation ("**Crystallex**") pursuant to ancillary jurisdiction for enforcing an arbitral award reduced to a federal judgment. *See Crystallex Int'l Corp. v. Bolivarian Republic of Venezuela*, 932 F.3d 126 (3d Cir. 2019).

B. *Statutory and Rule Predicates*. The predicates for the relief granted herein include, as applicable, (i) Rules 53 and 69 of the Federal Rules of Civil Procedure, (ii) Section 324 of Title 8 of the Delaware Code, (iii) the Court's general equitable powers to enforce its orders and judgments, *see Chambers v. NASCO, Inc.*, 501 U.S. 32, 43 (1991) (quoting *Link v. Wabash R.R. Co.*, 370 U.S. 626, 630–31 (1962)), (iv) the All Writs Act (*see United States v. N.Y. Tel. Co.*, 434 U.S. 159, 172 (1977) ("This Court has repeatedly recognized the power of a federal court to issue such commands under the All Writs Act as may be necessary or appropriate to effectuate and prevent the frustration of orders it has previously issued in its exercise of jurisdiction otherwise obtained.")), and (v) 28 U.S.C. § 2004.

C. *Sale Notice*. As evidenced by the Publication Affidavits and the status reports filed on the Court's public docket on October 23, 2023 [D.I. 771], January 8, 2024 [D.I. 839], and April 16, 2024 [D.I. 1134] (the "**Status Reports**"), and the Court's orders setting deadlines for the Marketing Process including the December 2024 Order, the April 2025 Scheduling Order, the *Order* [D.I. 1779] extending the topping period, the June 2025 Scheduling Order, and the August 2025 Scheduling Order: (i) due, proper, timely, adequate, and sufficient notice of the PDVH Shares being sold, the Recommendation, the Bidding Rounds, the Bidding Procedures (including the bidding process and the deadline for submitting bids for the Bidding Rounds), the Sale Hearing, the Sale Transaction, and the Order was provided by the Special Master; (ii) such notice was and is good, sufficient, and appropriate under the particular circumstances and complies with the Sale Procedures Order, the Bidding Procedures, and applicable law; and (iii) no other or further notice of the Recommendation, the Bidding Rounds, the Bidding Procedures, the Sale Hearing, the Sale Transaction, or the Order is required. With respect to Persons whose identities are not reasonably ascertained by the Special Master, as evidenced by the Publication Affidavits, publication of the notice each in the national print editions of *USA Today* on January 12, 2024, January 19, 2024, June 3, 2024, June 10, 2024, February 25, 2025, March 4, 2025, May 5, 2025, and May 12, 2025, *the Wall Street Journal* on January 12, 2024, January 19, 2024, June 1, 2024, June 8, 2024, February 24, 2025, March 3, 2025, May 3, 2025, and May 10, 2025, the *Delaware State News* on January 12, 2024, January 19, 2024, June 2, 2024, June 11, 2024 (e-edition), June 12, 2024 (print edition), February 26, 2025, March 5, 2025, May 7, 2025, and May 14, 2025, the *Delaware News Journal* on January 12, 2024, January 19, 2024, June 4, 2024, June 11, 2024, February 25, 2025, March 4, 2025, May 6, 2025, and May 13, 2025, as well as the Venezuelan publication *La Razón* on June 9, 2024, March 2, 2025, March 9 2025, May 4, 2025, and May 11, 2025, was sufficient and reasonably calculated under the circumstances to reach such Persons and is in compliance with the Sale Procedures Order, Bidding Procedures, and applicable law including Section 324 of Title 8 of the Delaware Code (collectively, the "**Publication Notices**").

D. *Notice and Opportunity to Object.* As evidenced by the Publication Affidavits and the Status Reports [D.I. 771, 839 & 1134], ~~a fair~~ an~~d~~ ~~reasonable~~ opportunity to object to, and be heard with respect to, the Recommendation, the Bidding Rounds, and the Sale Transaction has been given to any and all Persons who are or could be entitled to notice pursuant to the Sale Procedures Order and the Bidding Procedures, including, but not limited to, the following: (i) Buyer by its counsel Akin Gump Strauss Hauer & Feld and Quinn Emanuel Urquhart & Sullivan, LLP; (ii) PDVH Holding, Inc. ("**PDVH**"), by its counsel Eimer Stahl LLP ("**Eimer Stahl**"); (iii) CITGO Petroleum Corporation ("**CITGO**"), by its counsel Eimer Stahl; (iv) Petróleos de Venezuela, S.A., by its counsel Curtis, Mallet-Prevost, Colt & Mosle LLP ("**PDVSA**"); (v) the Bolivarian Republic of Venezuela (the "**Republic**"), by its counsel Munger, Tolles & Olson LLP; (vi) Crystallex International Corporation, by its counsel Gibson Dunn & Crutcher, LLP; (vii) Phillips Petroleum Company Venezuela Limited and ConocoPhillips Petrozuata B.V. ("**ConocoPhillips**"), by their counsel Wachtell, Lipton, Rosen & Katz; (viii) Former Additional Judgment Creditor, Altana Credit Opportunities Fund SPC, Altana Credit Opportunities Fund 1 SP, and Altana Funds Ltd. Cayman, by their counsel Bayard, P.A.; (ix) Additional Judgment Creditor, ACL1 Investments Ltd., ACL2 Investments Ltd. and LDO (Cayman) XVIII Ltd., by their counsel Riley & Jacobson, PLC; (x) Additional Judgment Creditor, Contrarian Capital Fund I, L.P., Contrarian Dome du Gouter Master Fund, LP, Contrarian Capital Senior Secured, L.P., Contrarian EM II, LP, Contrarian Emerging Markets, L.P., Boston Patriot Summer St LLC, Polonius Holdings, LLC, Emma I Master Fund, L.P., E1 SP, a Segregated Account of EMAP SPC, and Contrarian Capital Management, L.L.C., Contrarian Funds, L.L.C., by their counsel MoloLamken LLP; (xi) Additional Judgment Creditor, Gold Reserve Inc., by its counsel Norton Rose Fulbright US LLP; (xii) Additional

Judgment Creditor, Huntington Ingalls Incorporated, f/k/a, Northrop Grumman Ship Systems, Inc., f/k/a Ingalls Shipbuilding, Inc., by its counsel Alston & Bird, LLP; (xiii) Additional Judgment Creditor, Koch Minerals Sàrl and Koch Nitrogen International Sàrl, by their counsel Alston & Bird, LLP and Stinson LLP; (xiv) Additional Judgment Creditor, OI European Group B.V., by its counsel Morgan, Lewis & Bockius LLP; (xv) Former Additional Judgment Creditor, Pharo Gaia Fund, Ltd., Pharo Macro Fund, Ltd., and Pharo Trading Fund, Ltd., by their counsel Bayard, P.A.; (xvi) Additional Judgment Creditor, Red Tree Investments, LLC, by its counsel MoloLamken LLP; (xvii) Former Additional Judgment Creditor, Rudi Lovati and Alessandro Lucibello Piani, by their counsel Duane Morris LLP; (xviii) Additional Judgment Creditor, Rusoro Mining Limited, by its counsel DLA Piper LLP (US); (xvix) Additional Judgment Creditor, Saint-Gobain Performance Plastics Europe, by its counsel Alston & Bird, LLP; (xx) Additional Judgment Creditor, Siemens Energy, Inc., by its counsel Reed Smith LLP; (xxi) Additional Judgment Creditor, Tenaris S.A., Talta-Trading e Marketing Sociedade Unipessoal Lda., and Gramercy Distressed Opportunity Fund LLC, by their counsel (a) Debevoise & Plimpton LLP, (b) Halloran Farkas and Kittila LLP and (c) Skadden, Arps, Slate, Meagher & Flom LLP ("**Skadden**"); (xxii) Additional Judgment Creditor, Tidewater Investment SRL and Tidewater Caribe S.A., by their counsel Covington & Burling LLP; (xxiii) Additional Judgment Creditor, Valores Mundiales, S.L. and Consorcio Andino, S.L., by their counsel Covington & Burling LLP; (xxiv) Mobil Cerro Negro Holding, LLC., Venezuela Holdings, B.V., and Mobil Cerro Negro, Ltd., by their counsel Connolly Gallagher LLP; (xxv) Banco San Juan Internacional, Inc., by its counsel McCollom D'Emilio Smith Uebler LLC; (xxvi) G&A Strategic Investments I LLC, G&A Strategic Investments II LLC, G&A Strategic Investments III LLC, G&A Strategic Investments IV LLC, G&A Strategic Investments V LLC, G&A Strategic Investments VI LLC, and G&A Strategic Investments VII LLC, by their counsel (a) Andrew H. Sauder of Dailey LLP and (b) Skadden; (xxvii) Girard Street Investment Holdings LLC, by its counsel (a) Andrew H. Sauder of Dailey LLP and (b) Skadden; (xxviii) Refineria Di Korsou N.V., by its counsel Gellert Scali Busenkell & Brown, LLC; (xxvix) Ricardo Devengoechea, by his counsel Werb & Sullivan; (xxx) all Persons or entities known by the Special Master to hold any judgment or have asserted any lien, claim, encumbrance, or other interest in the PDVH Shares, for whom identifying information and addresses are available to the Special Master (the parties listed at ii-xxx, the "**Interested Parties**"); (xxxi) the United States Department of Treasury's Office of Foreign Assets Control ("**OFAC**"); and (xxxii) all other Persons as a result of Publication Notice or other notice (the parties listed at i–xxxii above, the "**Notice Parties**").

E. *Reasonable Discretion*. The Special Master has exercised his reasonable discretion in offering the PDVH Shares for sale, in units and as a whole, and has demonstrated good, sufficient, and sound justifications for approval of and entry into the Stock Purchase Agreement and the other agreements, documents, and instruments deliverable thereunder or attached thereto or referenced therein (collectively, the "**Transaction Documents**")[45] and for approval of the Sale Transaction. The Special Master's entry into and performance under the Transaction Documents (i) constitutes a sound and reasonable exercise of the Special Master's discretion consistent with the exercise of his duties to the Court in accordance with the Bidding Procedures and his responsibilities under the Sale Procedures Order and Bidding Procedures,

[45] The Transaction Documents shall not include that certain Transaction Support Agreement, dated August 12, 2025, by and among Amber Energy Inc. and certain PDVSA 2020 Bondholders party thereto (as amended, restated, supplemented, or otherwise modified from time to time, the "**Transaction Support Agreement**").

(ii) represents the best opportunity for the Notice Parties, as applicable, to recover value from the PDVH Shares on account of any judgments or Claims they may have against the Republic or PDVSA, and (iii) is reasonable and appropriate under the circumstances. Evidence of the Special Master's reasonable discretion in entering into and performing under the Transaction Documents includes (y) the Purchase Price, as defined in the Stock Purchase Agreement, and the other terms set forth in the Transaction Documents, which constitute the best offer received for the PDVH Shares; and (z) the Sale Transaction on the terms set forth in the Transaction Documents presents an orderly sale of the PDVH Shares and the best opportunity to maximize the value of the PDVH Shares and maximize distributions to the holders of Attached Judgments in respect of their interests in the PDVH Shares and the opportunity for recoveries to the Notice Parties, as applicable, including Crystallex, ConocoPhillips, and the Additional Judgment Creditors.

F. *Compliance with the Sale Procedures Order, December 2024 Order, Evaluation Criteria, April 2025 Scheduling Order, June 2025 Scheduling Order, and August 2025 Scheduling Order*. On October 11, 2022, this Court entered the *Sixth Revised Proposed Order (A) Establishing Sale and Bidding Procedures, (B) Approving Special Master's Report and Recommendation Regarding Proposed Sale Procedures Order, (C) Affirming Retention of Evercore as Investment Banker by Special Master and (D) Regarding Related Matters* [D.I. 481] approving the initial Bidding Procedures for the PDVH Shares. On December 31, 2024, this Court entered the December 2024 Order. On January 27, 2025, this Court entered a *Memorandum Order* [D.I. 1554] (the "**January 2025 Order**") which adopted evaluation criteria for Stalking Horse Bids, Base Bids, and Successful Bids (the "**Evaluation Criteria**"). On April 25, 2025, this Court entered the April Scheduling 2025 Order. On June 13, 2025, this Court entered the June 2025 Scheduling Order. On August 22, 2025, this Court entered the August 2025 Scheduling Order. The Bidding Procedures are substantively and procedurally fair, and non-collusive, and provided a full, fair, and reasonable opportunity for any entity or Person to make an offer to purchase the PDVH Shares. The Special Master complied with the Bidding Procedures, the Sale Procedures Order, the December 2024 Order, the April 2025 Scheduling Order, the June 2025 Scheduling Order, and the August 2025 Scheduling Order in all respects. Buyer complied with the Bidding Procedures, the Sale Procedures Order, the December 2024 Order, the April 2025 Scheduling Order, the June 2025 Scheduling Order, and the August 2025 Scheduling Order in all respects except as properly waived by the Special Master in the exercise of his duties to the Court in accordance with the Bidding Procedures. Buyer subjected its bid to competitive bidding in accordance with the Bidding Procedures and was designated the Successful Bidder for the PDVH Shares. The Bidding Rounds were duly noticed and conducted fairly and in good faith, without collusion, and in accordance with the Sale Procedures Order and the Bidding Procedures. All potential bidders and other potentially interested parties have been afforded a full, fair, and reasonable opportunity to submit bids for the PDVH Shares and participate in the Bidding Rounds. The Special Master complied with the Evaluation Criteria.

G. *Marketing Process.* As demonstrated by the Recommendation, the Publication Affidavits, the testimony and other evidence proffered or adduced at the Sale Hearing, and the representations of counsel made on the record at the Sale Hearing: (i) the Special Master and his investment banker, Evercore Group L.L.C., engaged in a robust and extensive Marketing Process pursuant to the Sale Procedures Order, the Bidding Procedures, and the December 2024 Order; (ii) the Special Master and his Advisors, as defined in the Sale Procedures Order, conducted the Marketing Process in good faith and in a fair and open manner; (iii) the Marketing Process provided all potential bidders sufficient information to enable them to make an informed judgment on whether to make a bid to purchase the PDVH Shares and the terms of any such bid; (iv) the Marketing Process, the Bidding Procedures, and the Bidding Rounds were non-collusive, duly noticed, and provided a full, fair, and reasonable opportunity for any entity to conduct due diligence and make an offer to purchase the PDVH Shares and submit higher or better offers for the PDVH Shares than Buyer's bid; (v) the Special Master considered any and all bids submitted in good faith and in accordance with his duties under the Sale Procedures Order; (vi) the Special Master and Buyer have negotiated and undertaken their roles leading to the entry into the Stock Purchase Agreement in a diligent, non-collusive, fair, reasonable, and good faith manner; and (vii) the Marketing Process conducted by the Special Master pursuant to the Sale Procedures Order and the Bidding Procedures obtained the best value for the PDVH Shares.

H. *Fair and Adequate Consideration; Best Value*. The consideration to be provided by Buyer under the Stock Purchase Agreement is fair, adequate, and reasonable consideration for the PDVH Shares and constitutes an adequate price for the purchase of the PDVH Shares under the terms of the Sale Procedures Order. Such consideration constitutes the best bid for the PDVH Shares. As a result, Buyer's bid represents the best opportunity to maximize distributions to the holders of Attached Judgments in respect of their interests in the PDVH Shares and the opportunity for recoveries to the Notice Parties, as applicable, including Crystallex, ConocoPhillips, and the Additional Judgment Creditors. Prompt approval of the Sale Transaction is the best means to preserve and maximize the value of the PDVH Shares and maximize distributions to Crystallex, ConocoPhillips, and the Additional Judgment Creditors. The total consideration to be provided by Buyer under the Transaction Documents reflects Buyer's reliance on each term and provision in this Order and in the Transaction Documents, and

Buyer would not be willing to enter into the Transaction Documents or acquire the PDVH Shares without each and every protection set forth in the Transaction Documents and this Order, including in paragraphs I (*The Bidding and Sale Process Were Conducted in Good Faith*), J (*No Successor or Other Derivative Liability*), K (*The Shares Are Free and Clear of Any Claim, Lien, Interest, or Encumbrance*), L (*Necessary Condition*), M (*Validity of Transfer*), S (*Opportunity to Participate in Marketing Process*), 2 (*Objections Overruled*), 6 (*Consummation of Sale Transaction(s)*), 11 (*Transfer of PDVH Shares Free and Clear*), 13 (*Injunction*), 14 (*Release of Claims as to Buyer and other Entities; Recordation*), 15 (*Releases by Holders of Any Attached Judgments*), ~~18~~19 (*No Successor or Other Derivative Liability*~~), 19 (*Non-Interference*~~), and 23 (*Provisions Non-Severable*). The Transaction Documents were not entered into, nor is the Sale Transaction being consummated, for the purpose of hindering, delaying, or defrauding present or future creditors of PDVSA under the laws of the United States, any state, territory, possession, the District of Columbia, or otherwise, and none of the parties to the Transaction Documents nor any of their direct or indirect Affiliates[~~5~~6] or subsidiaries is consummating the Sale Transaction for any other fraudulent or improper purpose.

I. *The Bidding and Sale Process Were Conducted in Good Faith*. The Transaction Documents and the Sale Transaction were negotiated, proposed, and entered into, and are being undertaken by the Special Master, Buyer, and the other parties to the Transaction Documents and

[~~5~~6] For the purposes of this Order, "**Affiliate**" means any Person (as defined in the Stock Purchase Agreement) that, directly or indirectly through one or more intermediaries, controls, or is controlled by, or is under common control with, such Person, and the term "control" (including the terms "controlled by" and "under common control with") means the possession, directly or indirectly, of the power to direct or cause the direction of the management and policies of such Person, whether through ownership of voting securities, by contract or otherwise.

their respective management, board of directors or equivalent governing body, officers, directors, employees, agents, members, managers, representatives, and advisors, in good faith, without collusion or fraud, and from arm's length bargaining positions, for fair consideration and fair value under the circumstances, and with representation by competent counsel of their choosing at all times. There has been no fraud, unfairness, surprise, or mistake, and the sale price is not so low as to shock the conscience. Likewise, the value to be paid by Buyer upon consummation of the Sale Transaction is the product of arm's length negotiations between the Special Master, Buyer, and the other parties to the Transaction Documents, and their respective representatives and advisors, in good faith and without collusion or fraud. Buyer has proceeded in good faith in all respects and at all times in that, among other things, (i) Buyer complied with the provisions of the Sale Procedures Order and Bidding Procedures, including compliance with confidentiality obligations and restrictions under the Sale Procedures Order and the Bidding Procedures and any applicable non-disclosure or confidentiality agreement; (ii) Buyer's bid was subjected to competitive Bidding Procedures as set forth in the Sale Procedures Order; (iii) all consideration to be provided by Buyer and all other material agreements or arrangements entered into by Buyer and the Special Master in connection with the Sale Transaction have been disclosed and are appropriate; and (iv) the negotiation and execution of Transaction Documents were at arm's length and in good faith; as such, Buyer is entitled to all of the benefits, immunities, and protections afforded by applicable law. Other than agreements among the Special Master, Buyer, and any other parties as reflected in the Transaction Documents and herein, the Purchase Price in respect of the PDVH Shares was not controlled by any agreement, including any agreement among potential bidders. The Special Master, Buyer, and other parties to the Transaction Documents shall be, and shall be deemed to be, acting in good faith, and are authorized to close the Sale Transaction immediately upon entry of this Order (subject to issuance of an authorizing license by OFAC and satisfaction of any other conditions precedent in the Transaction Documents).

J. *No Successor or Other Derivative Liability*. Except as otherwise expressly provided herein or in the Transaction Documents, upon and after Closing, and to the greatest extent allowed by applicable law (whether in effect now or in the future), Buyer and Buyer Affiliates[67] shall not have any liability, or any other obligation, of or related to the Republic, PDVSA, or their respective Affiliates, including any liability or obligation arising under or related to the sale and transfer of the PDVH Shares to Buyer. Upon the closing, Buyer will not assume the liabilities of PDVSA. Buyer and Buyer Affiliates are not, and the consummation of the Sale Transaction will not render Buyer or Buyer Affiliates a continuation of or a mere continuation of, and Buyer is not holding itself out as a continuation of or a mere continuation of, the Republic, PDVSA or their enterprises or operations, and there is no continuity or common identity between Buyer and the Republic or PDVSA or their subsidiaries or Affiliates. Accordingly, the Sale Transaction does not amount to a consolidation, merger, de facto merger, acquisition of all or substantially all assets, or similar transaction of Buyer or Buyer Affiliates with or into the Republic or PDVSA, and Buyer, and Buyer Affiliates are not, and shall not be deemed, as a result of the consummation of the Sale Transaction, past practice, historical operations, course of dealing, or otherwise: (i) to be a successor to the Republic, PDVSA or their Affiliates, (ii) to be a continuation, a mere continuation or substantial continuation of the

[67] For the purposes of this Order, "**Buyer Affiliates**" means an Affiliate of Buyer; *provided*, *however*, that the term "Buyer Affiliate" shall exclude PDVH and any of its direct or indirect subsidiaries and their respective successors and assigns by merger or otherwise.

Republic, PDVSA or the enterprise(s) of the Republic, PDVSA or their Affiliates, or (iii) to be liable for, or be subject to any obligations relating to, any acts or omissions of the Republic, PDVSA, any of their Affiliates, or an insider of the Republic, PDVSA or any of their Affiliates in the conduct of their business or related to the PDVH Shares, including with respect to the Attached Judgments and any judgment whose holder sought to have such judgment be an Attached Judgment, other than as set forth in the Transaction Documents. Without limiting the generality of the foregoing, and except as otherwise provided in the Transaction Documents, Buyer and Buyer Affiliates shall not be liable for any Claims against PDVSA or any of its Affiliates, and Buyer and Buyer Affiliates shall have no successor or vicarious liability of any kind or character whatsoever, whether known or unknown as of the Closing, whether now existing or hereafter arising, whether asserted or unasserted, perfected or unperfected, liquidated or unliquidated, noticed or unnoticed, recorded or unrecorded, matured or unmatured, legal or equitable, non-contingent or contingent, or otherwise, with respect to the business operations of the Republic, PDVSA, their Affiliates, or the PDVH Shares. To the extent there are any perfected Liens on the PDVH Shares, the same shall only attach to the proceeds of the Sale Transaction ultimately attributable to the property against which such perfected Liens applied or other specifically dedicated funds, in the same order of priority and with the same validity, force, and effect that such perfected Liens applied prior to the Sale Transaction, subject to any rights, claims, and defenses of PDVSA. Buyer would not have entered into the Transaction Documents and would not acquire the PDVH Shares but for the foregoing protections against potential claims against it based upon successor or similar liability, vicarious liability, or any other legal, equitable or other doctrine, whether existing now or in the future, and those protections' effectiveness. A sale of the PDVH Shares without the foregoing protections would yield substantially less value for Crystallex, ConocoPhillips, and the applicable Additional Judgment Creditors.

K. *The Shares Are Free and Clear of Any Claim, Lien, Interest, or Encumbrance.* Except as otherwise expressly provided herein, the Special Master is authorized and directed to sell the PDVH Shares to Buyer free and clear of any (i) right to a payment, whether or not such right is reduced to judgment, liquidated, unliquidated, fixed, contingent, matured, unmatured, disputed, undisputed, legal, equitable, secured, or unsecured, (ii) equitable remedy for breach of performance if such breach gives rise to a right to payment, whether or not such right to an equitable remedy is reduced to judgment, fixed, contingent, matured, unmatured, disputed, undisputed, secured or unsecured, and (iii) loss, liability, demand, claim, chose in action, any derivative vicarious, transferee, or successor or similar liability claims, rights, or causes of action, judgment, entitlement, residue, sanction, penalty, action, obligation, commitment, assessment, settlement, fee, debt, deficiency, guaranty of any kind, proceeding, damage, cost, or expense (including court costs and professional fees (including attorneys' fees and costs) whatsoever), whether at law or in equity, whether known or unknown, fixed, liquidated, contingent, or otherwise, whether under any theory of successor or transferee liability and whether imposed by agreement, understanding, law, or otherwise (a "**Claim**") and any mortgage, lien (whether consensual, statutory or arising under any Law), pledge, charge, security interest, financing statement, hypothecation, Preferential Right, easement, plot restriction, deed restriction, encumbrance of any kind, or other interest in property arising from an attachment, writ or other enforcement or execution of a judgment or Claim (a "**Lien**"). Following the Sale Transaction, the Notice Parties, as applicable, shall have no recourse against Buyer or Buyer

Affiliates or against the PDVH Shares, on account of those parties' respective judgments or other Claims against the Republic, PDVSA, or their respective Affiliates.

L. *Necessary Condition*. Buyer would not have entered into the Transaction Documents and will not consummate the transactions contemplated thereby (i) if the sale of the PDVH Shares was not free and clear of all Claims and Liens, including any rights or Claims based on any successor, vicarious, or transferee liability, except as otherwise provided in the Transaction Documents; or (ii) if Buyer would, or in the future could, be liable for any such Claims and Liens. Failure to provide such relief in this Order would frustrate the Sale Procedures Order and the other orders of this Court in the Action. The total consideration to be provided under the Transaction Documents reflects Buyer's reliance on this Order to provide it with title to and possession of the PDVH Shares free and clear of all Claims~~ pursuant to this Court's broad equitable authority under the All Writs Act, and 28 U.S.C. § 2004~~. A sale of the PDVH Shares without the foregoing protections would yield substantially less value for Crystallex, ConocoPhillips, and the applicable Additional Judgment Creditors.

M. *Validity of Transfer*. The transfer of the PDVH Shares to Buyer will be a legal, valid, and effective transfer of the PDVH Shares, including for the purposes of Title 8 of the Delaware Code and Article 8 of Title 6 of the Delaware Code, and will vest Buyer with any legal, equitable and beneficial right, title, and interest of PDVSA in and to the PDVH Shares, free and clear of all Claims and Liens. The consummation of the Sale Transaction is legal, valid, and properly authorized under all applicable law, and all of the applicable requirements of applicable law have been complied with in respect of the Sale Transaction. Entities providing financing in connection with the Sale Transaction may rely in all respects on all of the provisions of this Order.

N. *Required Approval*. Buyer has demonstrated that (i) Buyer has made, or will make in a timely manner (a) all filings and disclosures necessary to comply with the regulations of OFAC and (b) all necessary filings under the Hart-Scott-Rodino Antitrust Improvements Act of 1976, as amended, and any other antitrust laws, as applicable, and pay the fees associated with such filings; (ii) Buyer has a plan and the ability to obtain or make all requisite shareholder, governmental, regulatory, or other third-party approvals, consents and notifications, (iii) the proposed timing to undertake the actions required to obtain or make such approvals, consents and notifications is reasonable; (iv) the Sale Transaction is reasonably likely, after taking into consideration antitrust and any other regulatory matters, Buyer's prior experience, Buyer's commitment to take all action necessary, proper or advisable for Buyer to consummate the Sale Transaction prior to the Closing Date, and any other relevant considerations, to be consummated within a time frame acceptable to the Special Master and the Court; and (v) Buyer has consented to the Special Master, in his discretion, sharing with U.S. Government regulators, including OFAC, information pertaining to the Sale Transaction.

O. *Sale Authority*. The Court has authority to sell the PDVH Shares to Buyer pursuant to, as applicable, (a) Rule 69(a) of the Federal Rules of Civil Procedure, (b) Section 324 of Title 8 of the Delaware Code, (c) Rule 53 of the Federal Rules, (d) the Court's general equitable powers to enforce its orders and judgments (*see Chambers v. NASCO, Inc.*, 501 U.S. 32, 43 (1991) (quoting *Link v. Wabash R. Co.*, 370 U.S. 626, 630–31 (1962)); *see also IFC Interconsult, AG v. Safeguard Int'l Partners, LLC,* 438 F.3d 298, 311 (3d Cir. 2006)), (e) the All Writs Act (*see United States v. N.Y. Tel. Co.*, 434 U.S. 159, 172 (1977) ("This Court has repeatedly recognized the power of a federal court to issue such commands under the All Writs Act as may be necessary or appropriate to effectuate and prevent the frustration of orders it has previously issued in its exercise of jurisdiction otherwise obtained . . . .")), and (f) 28 U.S.C. § 2004. The Court is in possession and control of the PDVH Shares, and, subject to authorization from OFAC, is authorized to sell, transfer, assign, convey, and deliver all title, interest, and/or rights of PDVSA in the PDVH Shares to Buyer, as required by the Stock Purchase Agreement, under applicable law.

P. *Sale Order Required by Buyer*. Entry of this Order approving the Stock Purchase Agreement is a requirement of the Stock Purchase Agreement and such requirement is an appropriate condition precedent to Buyer's consummation of the Sale Transaction.

Q. *Power and Authority*. The Special Master (i) has full power and authority to execute the Transaction Documents and (ii) has all of the power and authority necessary to consummate the transactions contemplated by the Transaction Documents. Upon entry of this Order, other than any consents identified in the Transaction Documents, the Special Master needs no consent or approval from any other Person to consummate the Sale Transaction.

R. *Binding Contract*. The Transaction Documents are valid and binding contracts among the Special Master and Buyer and shall be enforceable pursuant to their terms.

S. *Opportunity to Participate in Marketing Process*. This Action has been pending since June 19, 2017. In that time, this Action, the Marketing Process, and the Sale Transaction have received substantial national and international media coverage. The Court has held at least 21 public hearings and status conferences regarding the subject matter of the PDVH Shares, the claims against the Republic, PDVSA, and/or PDVH, and proceedings related thereto. The Marketing Process additionally conformed to the Notice Procedures laid out in the Sale Procedures Order, and gave notice to any parties that may have an interest in the PDVH Shares, including the Sales Process Parties, creditors of the Republic and/or PDVSA, potential bidders with interests in the PDVH Shares, and any other parties with any interests in the PDVH Shares. The Special Master, in accordance with the Sale Procedures Order, has published Sale Notices at least eight (8) times since the Launch Date, in at least four different publications. Each Sale Notice described the assets being sold (*i.e.*, the PDVH Shares), the Bidding Procedures, and the Marketing Process. The Sale Notices provided notice of key dates and deadlines for the Marketing Process, including, among other things, the Launch Date, the First Round Indication of Interest Deadline, the Second Round deadline to submit a Binding Bid, the stalking horse bid deadline, and the topping period deadline. In addition to the Sale Notices, all parties with a valid interest or perfected lien in the PDVH Shares have received notice from the Special Master of important Marketing Process and Sale Transaction-related milestones through a multitude of reports, motions, and notices submitted to the Court, as well as in regular, public, status conferences. Accordingly, Persons holding judgments or Claims against the Republic, PDVSA, and/or PDVH and all parties with an interest in the sale of the PDVH Shares have had sufficient notice of and an opportunity to participate in the Marketing Process. The failure of the holder of a judgment against, or other creditor of, the Republic, PDVSA and/or their Affiliates (whether now or in the future) to participate in the Marketing Process, to seek to become an Additional Judgment Creditor, or to successfully become an Additional Judgment Creditor shall not be grounds for challenging the Sale Transaction or this Order or to bring claims against Buyer or Buyer Affiliates whether existing now or in the future, and this Order shall be binding upon all such current or future creditors.

T. *Legal and Factual Bases*. The legal and factual bases set forth in the Recommendation, and at the Sale Hearing, establish just cause for the relief granted herein.

U. *Necessity of Order*. The Sale Transaction represents the best bid for the PDVH Shares and, without the relief in this Order, the Special Master does not believe the Marketing Process would yield such comparable value. The Special Master believes the Marketing Process provides the best opportunity to maximize the value of the PDVH Shares and maximize distributions thereon to the holders of Attached Judgments and the opportunity for recoveries to the Notice Parties, as applicable, including Crystallex, ConocoPhillips, and the Additional Judgment Creditors, and is not aware of a better alternative proposed by the Republic, PDVSA, PDVH, CITGO, or any other party.

IT IS HEREBY ORDERED THAT:

1. *Recommendation Is Adopted*. To the extent not already approved pursuant to the Sale Procedures Order, the Recommendation is adopted and the relief recommended therein is granted and approved as set forth herein.

2. *Objections Overruled*. Except in the case of objections described in [paragraphs [ ] and [ ] of this Order,] or as otherwise provided in this Order or in any subsequent Opinion or Order issued by the Court that modifies this Order, all objections, if any, and any and all joinders thereto, to the Recommendation, including the Special Master's proposed form of this Order or the relief granted herein that have not been previously overruled, withdrawn with prejudice, waived, or settled as announced to this Court at the Sale Hearing, by stipulation filed with this Court, or as provided in this Order, are hereby overruled on the merits and with prejudice. Parties who did not properly object to the entry of this Order in accordance with the Sale Procedures Order, or who withdrew their objections thereto, have, and are deemed to have waived any right to contest the relief granted herein in respect of the Sale Transaction and the Transaction Documents for all purposes. All holders of liens, claims, interests, and

encumbrances against the PDVH Shares who did not object, or withdrew their objections to the Sale Transaction are likewise deemed to have waived any such rights. To the extent there are any perfected Liens on the PDVH Shares, the same shall only attach to the proceeds of the Sale Transaction ultimately attributable to the property against which such perfected Liens applied or other specifically dedicated funds, in the same order of priority and with the same validity, force, and effect that such perfected Liens applied prior to the Sale Transaction, subject to any rights, claims, and defenses of PDVSA.

3. *Notice*. Notice of the Recommendation, the Bidding Rounds, the Bidding Procedures, the Sale Transaction, and the Sale Hearing was adequate, appropriate, fair and equitable under the circumstances and complied in all respects with the Sale Procedures Order and the Bidding Procedures.

4. *Fair and Adequate Purchase Price*. The consideration to be provided by Buyer under the Stock Purchase Agreement is fair, adequate, and reasonable consideration for the PDVH Shares and constitutes (i) fair consideration and fair value under any other applicable laws of the United States, any state, territory or possession or the District of Columbia and any other applicable law and (ii) an adequate price for the purchase of the PDVH Shares under the circumstances of this Action and the terms of the Sale Procedures Order. Such consideration constitutes the best bid for the PDVH Shares.

5. *Approval of the Transaction Documents*. Except as otherwise provided herein, the Transaction Documents, including all of the transactions contemplated thereby, including, without limitation, the Debt Financing and documents related thereto and all of the terms and conditions thereof, are hereby authorized and approved in their entirety.[~~7~~8] The failure

[~~7~~8] For the avoidance of doubt, in this Order this Court is not approving or authorizing the Transaction Support Agreement which is by and among Amber Energy Inc. and certain specifically to include any particular provision of the Transaction Documents in this Order shall not diminish or impair the effectiveness of such provision, it being the intent of this Court that the Transaction Documents, and the entry into the Transaction Documents by the Special Master, be authorized and approved in their entirety except as otherwise provided herein.

6. *Consummation of Sale Transaction(s).* Pursuant to ~~28 U.S.C. § 2004, Federal Rule of Civil Procedure 69, Section 324 of Title 8 of the Delaware Code, the All Writs Act, and the broad equitable powers of the Court~~applicable law, and subject to authorization from OFAC, the Court is authorized and empowered to transfer the PDVH Shares in accordance with the terms of the Transaction Documents and the terms of this Order. The Special Master, his Advisors and agents, are authorized and directed to execute, deliver, and perform their obligations under and comply with the terms of the Transaction Documents and to consummate the Sale Transaction, including by taking any and all actions as may be reasonably necessary or desirable to implement the Sale Transaction and each of the transactions contemplated thereby pursuant to and in accordance with the terms and conditions of the Transaction Documents and this Order without leave of Court. All Interested Parties and any Persons or entities acting in concert with them are prohibited and enjoined from taking any action that adversely affects, interferes with, is likely to frustrate or is in any way inconsistent with the ability of the Special Master or his Advisors and agents to transfer the PDVH Shares to Buyer in accordance with the Stock Purchase Agreement and this Order, subject to Paragraph 28 hereof, and, *provided* that, the foregoing restriction shall not prevent any Person or entity from exercising any rights granted or preserved by this Order (including Paragraph 28 hereof); *provided*, *further*, that the foregoing

Transaction Support Agreement which is by and among Amber Energy Inc. and certain PDVSA 2020 Bondholders.

restriction in this sentence shall not apply to any act of a United States regulatory agency required to implement the Sale Transaction. For the avoidance of doubt, the foregoing restrictions shall not prevent any party in *G&A Strategic Investments I LLC v. PDVSA*, Case No. 1:23-cv-10766-JSR (S.D.N.Y.), or their Affiliates or successors and assigns, from prosecuting or defending the claims asserted therein, including in connection with any associated appeal, or in seeking to enforce, or defending against such enforcement, any Claim against the assets of PDVH or any of its direct or indirect subsidiaries, including by merger or otherwise. PDVH, CITGO and each of their direct and indirect subsidiaries, representatives, employees, agents, designees, successors, or assigns (collectively, the "**CITGO Related Parties**") are directed and hereby ordered to comply with the obligations and covenants applicable to PDVH, CITGO and to any CITGO Related Parties set forth in the following sections of the Stock Purchase Agreement (regardless of, and independent of, any obligation for the Special Master to "cause" those parties to comply with such obligations and covenants) and the Special Master is authorized to seek this Court's assistance and/or an order from the Court to compel compliance if, in his reasonable judgment, any of PDVH, CITGO or the CITGO Related Parties fails to comply with such obligations and covenants: Section 2.3 (*Closing Deliveries of the Parties*), Section 6.1 (*Conduct of the Business Pending the Closing*), Section 6.2 (*Access to Information*), Section 6.3 (*Regulatory Approvals; Third Party Consents*), Section 6.7 (*Public Announcements*), Section 6.8 (*Employee Matters*), Section 6.10 (*Company's Obligations in Respect of Debt Financing*), Section 6.11 (*Tax Matters*), Section 6.13 (*Notices of Certain Events*), Section 6.17 (*280G*) and Section 6.18 (*Financial Statements*). Any failure by PDVH, CITGO or the CITGO Related Parties to comply with any obligation or covenant contained in the Stock Purchase Agreement and referenced in the immediately preceding sentence may result in a contempt order and appropriate sanctions against the violating entity, as well as the individual directors, officers or employees responsible for the violation.

7. *Execution of Transaction Documents*. The Special Master, his Advisors and agents, are authorized to execute and deliver, and authorized to perform under, consummate, and implement all additional notices, assumptions, conveyances, releases, acquittances, instruments, and documents that may be reasonably necessary or desirable to implement the Transaction Documents, including the transfer and, as applicable, the assignment of all the PDVH Shares, and to take all further actions as may be (i) reasonably requested by Buyer for the purpose of assigning, transferring, granting, conveying, and conferring to Buyer, or reducing to Buyer's possession, the PDVH Shares and/or (ii) necessary or appropriate to the performance of the obligations contemplated by the Transaction Documents, all without further order of this Court.

8. *Payment of Transaction Expenses*. The Special Master shall continue to file periodic status reports requesting the Court's approval of the Special Master's Transaction Expenses. Any approved but unpaid Transaction Expenses as of the Closing shall be paid to the Special Master from the proceeds of the Sale Transaction prior to any distributions on account of Attached Judgments.

9. *Special Master Expense Reserve Holdback.* The Special Master shall be entitled to direct a portion of the sale proceeds, in an amount reasonably determined by the Special Master and approved by the Court prior to the closing of the Sale Transaction, to be deposited into an escrow account for the purpose of paying any out-of-pocket costs, fees, or expenses incurred by the Special Master on or after the closing of the Sale Transaction for the Special Master, investment bankers, third party consultants, legal counsel and any other Representatives (as defined in the Stock Purchase Agreement) or Advisors (as defined in the Sale Procedures

Order) and approved by the Court, including any fees or expenses related to implementation, indemnification or reimbursement for any liability, legal costs, or court costs, or any further adjudication, of the Sale Transaction or this Order. Any such amounts remaining in escrow after all such costs, fees and expenses incurred by the Special Master have been so paid or distributed shall be paid to the Additional Judgment Creditors in compliance with the Final Priority Order, this Order, and any further order of the Court deemed necessary by the Special Master.

10. *Document Acceptance*. Each and every federal, state, local, or foreign government or governmental or regulatory authority, agency, board, bureau, commission, court, department, or other governmental entity is hereby authorized ~~and directed~~ to accept any and all documents and instruments necessary and appropriate to consummate the transactions contemplated by the Transaction Documents.

11. *Transfer of PDVH Shares Free and Clear*. Pursuant to applicable law, and subject to authorization from OFAC, the Special Master is authorized and directed to transfer the PDVH Shares in accordance with the terms of the Stock Purchase Agreement and this Order. The transfer of the PDVH Shares by the Special Master to Buyer in accordance with the Stock Purchase Agreement and this Order shall: (i) be valid, legal, binding, and effective; (ii) vest Buyer with all right, title, and interest in and to the PDVH Shares; and (iii) be free and clear of all Claims and Liens against the PDVH Shares, ~~pursuant to this Court's broad equitable authority,~~ except as otherwise provided in the Transaction Documents. Following the consummation of the Sale Transaction, the Notice Parties shall have no recourse against Buyer or Buyer Affiliates, or against the PDVH Shares, on account of those parties' respective judgments or other Claims against the Republic, PDVSA or their respective Affiliates. On the Closing Date, this Order shall be considered, and shall constitute, for any and all purposes, a full

and complete general assignment, conveyance and transfer of the PDVH Shares, transferring good and marketable and indefeasible title and interest in all of the PDVH Shares to Buyer with effect at Closing of the Sale Transaction in accordance with the Transaction Documents. The provisions of this Order authorizing and approving the transfer of the PDVH Shares free and clear of all interests shall be self-executing, and neither the Special Master or Buyer shall be required to execute or file releases, termination statements, assignments, consents or other instruments in order to effectuate, consummate and implementation the provisions of this Order and the Stock Purchase Agreement.

12. *Endorsement of Certificates; Registration of Transfer*. The Special Master is authorized and directed to execute on behalf of PDVSA and deliver to Buyer, at Closing, the stock certificates representing the PDVH Shares duly endorsed in blank and any executed stock powers or other instruments of transfer necessary to transfer to Buyer good and marketable title to the PDVH Shares and otherwise proceed with the Sale Transaction. PDVH is directed, at Closing, to register the transfer of the PDVH Shares to Buyer upon the books and records of PDVH. Following the Closing, the sale of the PDVH Shares to Buyer shall be, and shall be deemed to be, "made and confirmed" as contemplated by Section 324 of Title 8 of the Delaware Code and, upon a certified copy of this Order being left with any officer or director or with the registered agent of PDVH, Buyer shall be entitled to the PDVH Shares and all income, or dividends which may have been declared, or become payable thereon since the attachment laid, subject to the terms of the Stock Purchase Agreement.

13. ~~*Injunction*. Pursuant to the All Writs Act, and except as otherwise provided in the Stock Purchase Agreement, the Transaction Documents, or this Order, all Persons (and their respective successors and assigns) including the~~**[Supporting Parties' Proposed Language]**

Injunction. The Republic, PDVSA, PDVH, CITGO, Crystallex, ConocoPhillips, any party with an Attached Judgment, including the Additional Judgment Creditors, ~~judgment holders or other creditors of the Republic or PDVSA (or their respective Affiliates) who are not Additional Judgment Creditors, all debt security holders, equity security holders or putative equity security holders, governmental tax and regulatory authorities, lenders, customers, vendors, employees, former employees, litigation claimants, trustees, trade creditors, and any other creditors (or agent of any of the foregoing)~~and any Affiliate or successor or assignee of the aforementioned parties, who may or do hold, now or in the future, Claims against the Republic, PDVSA, or the PDVH Shares, arising under or out of, in connection with, or in any way relating to, the Republic, PDVSA, the PDVH Shares prior to the Closing, the operation of PDVH or ownership of the PDVH Shares by PDVSA in each case prior to the Closing, or the Sale Transaction, are hereby forever barred, estopped, and permanently enjoined from asserting or pursuing such Claims against Buyer, Buyer Affiliates, or any of their respective successors or assigns~~ including taking any of the following actions with respect to any such Claims either directly or indirectly: (i) commencing or continuing in any manner any action, whether at law or in equity, in any judicial, administrative, arbitral, or any other proceeding, against Buyer, Buyer Affiliates, and any of their respective successors or assigns; (ii) enforcing, attaching, collecting, or recovering in any manner any judgment, award, decree, or order against Buyer, Buyer Affiliates, and any of their respective successors or assigns; (iii) creating, perfecting, or enforcing any such Claim against Buyer, Buyer Affiliates, and any of their respective successors or assigns, and the PDVH Shares; (iv) asserting any such Claim as a setoff, right of subrogation, or recoupment of any kind against any obligation due against Buyer, Buyer Affiliates, any of their respective successors or assigns, or the PDVH Shares; or (v) commencing or continuing any action in any manner or~~

~~place that does not comply, or is inconsistent, with the provisions of this Order or the agreements or actions contemplated or taken in respect thereof.~~, or against the PDVH Shares.

13. [**Venezuela Parties' Proposed Language**] *Injunction.* [The Venezuela Parties propose deleting this paragraph in its entirety.]

14. *Release of Claims as to Buyer and other Entities; Recordation*. Except as expressly set forth in the Stock Purchase Agreement, the Transaction Documents, or this Order, this Order (i) shall be effective as a determination that, as of the Closing, all Claims, including all Attached Judgments that have been paid or credit bid, have been unconditionally released, discharged in full or, with respect to any Attached Judgment that is extinguished in part, discharged in part and terminated as to Buyer, Buyer Affiliates, and the PDVH Shares, and that the conveyances and transfers described herein and in the Stock Purchase Agreement and the Transaction Documents have been effected, and (ii) is and shall be binding upon and govern the acts of all Persons, including all filing agents, filing officers, title agents, title companies, recorders of mortgages, recorders of deeds, registrars of deeds, administrative agencies, governmental departments, secretaries of state, federal, state, county and local officials and all other Persons who may be required by operation of law, the duties of their office, or contract, to accept, file, register or otherwise record or release any documents or instruments that reflect that Buyer is the assignee and owner of the PDVH Shares, free and clear of all Claims, or who may be required to report or insure any title or state of title in or to any lease (all such entities being referred to as "**Recording Officers**"). All Recording Officers are authorized ~~and directed~~ to strike recorded encumbrances, claims, liens, and other interests against the PDVH Shares recorded prior to the date of this Order. A certified copy of this Order may be filed with the

appropriate Recording Officers to evidence cancellation of any recorded encumbrances, claims, liens, pledges, and other interests against the PDVH Shares recorded prior to the date of this Order. All Recording Officers are hereby authorized ~~and directed~~ to accept for filing any and all of the documents and instruments necessary, advisable or appropriate, and appropriate to consummate the transactions contemplated by the Stock Purchase Agreement.

15. *Releases by Holders of Any Attached Judgments*. Immediately upon the later of (i) the indefeasible receipt by a holder of an Attached Judgment of an amount sufficient to satisfy its Attached Judgment based upon the available proceeds from the Sale Transaction (the "**Sale Proceeds**") or (ii) the Closing, the holder of an Attached Judgment (a) shall have, and shall be deemed to have, automatically released all of the security interests, liens and pledges, including its Attached Judgment, as defined in the Stock Purchase Agreement, and any other Claims on the PDVH Shares securing the Attached Judgment with no further action (the "**Lien Release**"), whether or not the holder's Attached Judgment was satisfied in full or at all from the Sale Proceeds, and (b) is authorized and directed to take any such actions as may be reasonably requested by the Court to evidence the release of such security interests, liens and pledges, including the execution, delivery and filing or recording of such releases as may be reasonably requested by the Court or Buyer or as may be required in order to terminate any related financing statements, mortgages, mechanic's liens, or *lis pendens*. This Order is, and shall be deemed to be, in recordable form sufficient to be placed in the filing or recording system of each and every federal, state, or local government agency, department, or office.

16. *Licenses*. In accordance with the Sale Procedures Order and the Bidding Procedures, Buyer shall obtain all required permit(s), license(s), registration(s), governmental authorization(s) or approval(s) or similar grant(s), including pursuant to the Hart-Scott-Rodino

Act and any other applicable antitrust laws and all licenses required by OFAC relating to the transfer or conveyance of the PDVH Shares to Buyer under the Stock Purchase Agreement and the Transaction Documents, within a customary amount of time. Buyer and its legal counsel and advisors shall coordinate in good faith with the Special Master's Advisors to discuss and explain Buyer's regulatory and other consent analysis, strategy, and timeline for securing all such approvals and consents in accordance with the terms of the Stock Purchase Agreement to facilitate the timely Closing of the Sale Transaction.

17. *Distribution and Application of Sale Proceeds.* In accordance with the Transaction Documents, prior to the Closing, the Special Master and his Advisors shall provide to Acquiom Financial LLC, a Colorado limited liability company, in its capacity as payments administrator (the "**Paying Agent**"), a spreadsheet pursuant to that certain Payments Administration Agreement, to be executed before the entry of this Order, by and among Buyer, the Special Master and the Paying Agent, which shall indicate, among other things, that, at the Closing, Buyer will pay the Closing Consideration (as defined in the Stock Purchase Agreement) to the Paying Agent, and the Paying Agent will pay to:

i. the Special Master and his Advisors, any approved but unpaid Transaction Expenses as of the Closing;

ii. the Sale Process Parties and the Additional Judgment Creditors, any Transaction Expenses paid as of Closing; and

iii. the holders of any Attached Judgments, in accordance with the terms of the Stock Purchase Agreement and the Final Priority Order.

The remaining sale proceeds will be distributed in accordance with the terms of the Stock Purchase Agreement and other Transaction Documents. Following the payments provided for in this paragraph, all Liens that existed prior to Closing in or on the PDVH Shares shall attach to the remaining proceeds of the Sale Transaction in the same order of priority and with the same extent, validity, force, and effect that such Liens had prior to the Sale Transaction.

18. **[Supporting Parties' Proposed Language]** *Obligation to Report Recovery on Attached Judgments; Amendment to Attached Judgment Amount Schedule and Impact on Payments to holders of Attached Judgments.* If, prior to Closing, a holder of an Attached Judgment receives ~~or otherwise becomes entitled by entry of a court order to receive on or prior to the anticipated closing of this sale of the PDVH Shares~~ any payment or consideration in connection with or in respect of an Attached Judgment, the holder of an Attached Judgment shall promptly (but in no event later than within 3 business days) so notify the Court and Special Master by filing notice of the same on the public docket. This notice shall include the amount (the "**Alternative Recovery Amount**") ~~and source of such payment or consideration~~. In this event, the Attached Judgment shall be reduced by the Alternative Recovery Amount, and the corresponding amount that otherwise would have been paid to the holder of an Attached Judgment under the terms of the Stock Purchase Agreement and Final Priority Order shall instead be paid to satisfy other Attached Judgments in accordance with the Final Priority Order. The Special Master shall thus revise the amounts payable to holders of Attached Judgments (the "**Revised Attached Judgment Amount Schedule**") to deduct the amount of such payment or consideration from the amount of that Attached Judgment, and shall promptly (but in no event later than within 5 business days after the filing of the notice by the holder of an Attached Judgment) file the Revised Attached Judgment Amount Schedule on the public docket and, if the Revised Attached Judgment Amount Schedule has not already been provided to the Paying Agent, also provide the Revised Attached Judgment Amount Schedule to the Paying Agent. In no event shall the filing of any such notice by a holder of an Attached Judgment delay or prevent the

Closing. If the Closing occurs prior to the filing of the Revised Attached Judgment Amount Schedule, then the Alternative Recovery Amount(s) shall be retained by the Paying Agent and paid out in accordance with the Revised Attached Judgment Amount Schedule promptly after such Revised Attached Judgment Amount Schedule is filed.

18. [**Gold Reserve's Proposed Language**] *Obligation to Report Recovery on Attached Judgments; Amendment to Attached Judgment Amount Schedule and Impact on Payments to holders of Attached Judgments.* If, prior to Closing, a holder of an Attached Judgment receives or otherwise becomes entitled, by entry of a court order , settlement, or otherwise, to receive any payment or consideration in connection with or in respect of an Attached Judgment, the holder of an Attached Judgment shall promptly (but in no event later than within 3 business days) so notify the Court and Special Master by filing notice of the same on the public docket. This notice shall include the amount (the "**Alternative Recovery Amount**"), the source of such payment or consideration, the expected payment date, and the amount of the Attached Judgment that is satisfied by the Alternative Recovery Amount (the "**Attached Judgment Reduction Amount**"). In this event, the Attached Judgment shall be reduced by the Attached Judgment Reduction Amount, and the amount that otherwise would have been paid to the holder of an Attached Judgment under the terms of the Stock Purchase Agreement and Final Priority Order shall instead be paid to satisfy other Attached Judgments in accordance with the Final Priority Order. The Special Master shall thus revise the amounts payable to holders of Attached Judgments (the "**Revised Attached Judgment Amount Schedule**") to deduct the Attached Judgment Reduction Amount from the amount of that Attached Judgment, and shall promptly (but in no event later than within 5 business days after the filing of the notice by the holder of an Attached Judgment) file the Revised Attached

Judgment Amount Schedule on the public docket and, if the Revised Attached Judgment Amount Schedule has not already been provided to the Paying Agent, also provide the Revised Attached Judgment Amount Schedule to the Paying Agent. In no event shall the filing of any such notice by a holder of an Attached Judgment delay or prevent the Closing. If the Closing occurs prior to the filing of the Revised Attached Judgment Amount Schedule, then the Alternative Recovery Amount(s) shall be retained by the Paying Agent and paid out in accordance with the Revised Attached Judgment Amount Schedule promptly after such Revised Attached Judgment Amount Schedule is filed.

19. *No Successor or Other Derivative Liability*. Neither Buyer nor any of Buyer Affiliates shall be deemed by virtue of the Sale Transaction to have effected a consolidation, merger, or de facto merger of Buyer and any of Buyer Affiliates with or into PDVSA and Buyer and Buyer Affiliates are not, and shall not be deemed, as a result of the consummation of the Sale Transaction: (i) to be a successor to PDVSA, (ii) to be an alter ego or a mere continuation or substantial continuation or a successor in any respect of PDVSA, including within the meaning of any foreign, federal, state or local law, or (iii) to be liable for, or be subject to any obligations relating to, any acts or omissions of PDVSA in the conduct of its business or arising under or related to the PDVH Shares, other than as set forth in the Stock Purchase Agreement. To the maximum extent available under applicable law, Buyer's acquisition of the PDVH Shares shall be free and clear of any successor or similar liability claims and other types of transferee liability of any kind or character whatsoever, whether known or unknown, whether now existing or hereafter arising, whether asserted or unasserted, or whether fixed or contingent at the time of the Closing. The operations of Buyer and Buyer Affiliates shall not be deemed a continuation of PDVSA's business operations, the PDVH Shares, or any Liabilities of PDVSA as a result of the

acquisition of the PDVH Shares. Following consummation of the Sale Transaction, the Notice Parties shall have no recourse against Buyer or Buyer Affiliates, or against the PDVH Shares, on account of those parties' respective judgments or other Claims against the Republic or PDVSA. The consideration given by Buyer shall constitute valid and valuable consideration for the foregoing releases of any potential successor or similar liability claims and other types of transferee liability of any kind or character whatsoever, which releases shall be deemed to have been given in favor of Buyer by all holders of such claims.

~~20. *Non-Interference*. Following the Closing Date, no holder of an adverse interest in the PDVH Shares, nor any other Person or entity, shall interfere with Buyer's title to the PDVH Shares based on or related to such adverse interest or any actions that Buyer, Buyer Affiliates, PDVH, PDVH's subsidiaries and Affiliates (including CITGO Holding, Inc. and CITGO), the Republic or PDVSA have taken or may take related to the Sale Transaction or this Action.~~

20. ~~21.~~ **[Supporting Parties' Proposed Language]** *Judicial Immunity & Exculpation*. The Special Master is entitled to judicial immunity in the performance of his duties as authorized by the Special Master Order, the Sale Procedures Order, the Bidding Procedures, and this Order, including implementation of the Sale Transaction. The Special Master's Advisors are entitled to judicial immunity in connection with all actions taken at the direction of, on behalf of, or otherwise in connection with representation of, or advising, the Special Master. No Person or entity, including Buyer, shall be permitted to pursue any cause of action or commence or prosecute any suit or proceeding against the Special Master or the Advisors, or their respective employees, officers, directors, attorneys, auditors, representatives, agents, successors or assigns, for any reason whatsoever relating to this Action, implementation of the Sale Procedures, or in connection with the Sale Transaction, or the performance of the Special

Master's and his Advisors' duties pursuant to this Order or any other orders of the Court, or any act or omission by the Special Master or any Advisor in connection with the foregoing. All interested Persons and entities, including but not limited to the Sale Process Parties, any holder of an Attached Judgment, any Potential Bidder or Buyer, and all Persons acting in concert with them, are hereby enjoined and restrained from pursuing any such cause of action or commencing any such action or proceeding. If any Person or entity attempts to pursue any such cause of action or commence any suit or proceeding against the Special Master or any of the Advisors with knowledge of this Order (or continues to pursue or prosecute any cause of action, suit or proceeding after having received notice of this Order), the Court shall issue an order to show cause to such Person or entity and a hearing will be scheduled to consider appropriate relief, which may include payment of fees and expenses incurred by the Special Master or any of the Advisors in connection therewith. To the maximum extent permitted by applicable law, neither the Special Master nor his Advisors nor their respective employees, officers, directors, attorneys, auditors, representatives, agents, successors and assigns will have or incur, and are hereby released and exculpated from, any claim, obligation, suit, judgment, damage, demand, debt, right, cause of action, remedy, loss, and liability for any claim in connection with or arising out of all actions taken to implement the Marketing Process, Sale Procedures, Bidding Procedures, or Sale Transaction, or the performance of the Special Master's and his Advisors' duties pursuant to this Order and all other orders of the Court.

20. **[Venezuela Parties' Proposed Language]** *Judicial Immunity & Exculpation.* The Special Master is entitled to judicial immunity in the performance of his duties as authorized by the Special Master Order, the Sale Procedures Order, the Bidding Procedures, and this Order, including implementation of the Sale Transaction. The Special Master's Advisors are entitled to

judicial immunity in connection with all actions taken at the direction of, on behalf of, or otherwise in connection with representation of, or advising, the Special Master.

21. ~~22.~~ *Modification of Stock Purchase Agreement*. Subject to the terms of the Transaction Documents, including the Stock Purchase Agreement, and any related agreements, documents, or other instruments, the Transaction Documents may be modified, amended, or supplemented by the parties thereto, in a writing signed by the party against whom enforcement of any such modification, amendment, or supplement is sought, and in accordance with the terms thereof, without further order of this Court; ***provided***, that any proposed material modification, amendment or supplement to the Transaction Documents shall be served on the Interested Parties and the PDVSA 2020 Bondholders, at least three (3) business days' prior to its proposed execution and, if objected to by any Interested Parties and/or the PDVSA 2020 Bondholder Parties, shall be subject to further Court order absent an agreement of the parties thereto and an objecting party.

22. ~~23.~~ *Conflicts; Precedence*. In the event that there is a direct conflict between the terms of this Order and the terms of the Transaction Documents, the terms of this Order shall control. The failure to specify or include any particular provisions of the Stock Purchase Agreement or the Transaction Documents in this Order shall not diminish or impair the effectiveness of such provisions, it being the intent of this Court that the Stock Purchase Agreement, the Transaction Documents, and the Sale Transaction be authorized and approved in their entirety.

23. ~~24.~~ *Provisions Non-Severable*. The transactions contemplated under the Transaction Documents (including the Sale Transaction) and in this Order are inextricably linked and collectively constitute a single, integrated transaction, and each provision of the Transaction

Documents is incorporated into and part of this Order as if fully set forth herein. Buyer would not have entered into the Transaction Documents and would not acquire the PDVH Shares but for its reliance on each term and provision in this Order and in the Transaction Documents being valid and enforceable pursuant to its terms. The total consideration to be provided by Buyer under the Transaction Documents reflects Buyer's reliance on each term and provision in this Order and in the Transaction Documents. As such, each term and provision in this Order and in the Transaction Documents is integral to the Sale Transaction, nonseverable and mutually dependent.

24. ~~25.~~ *Retention of Jurisdiction*. This Court shall retain jurisdiction to, among other things, (i) interpret, enforce, and implement the terms and provisions of this Order and the Stock Purchase Agreement (including all amendments thereto, any waivers and consents thereunder, and of each of the agreements executed in connection therewith) and (ii) adjudicate disputes related to this Order and the Stock Purchase Agreement (including all amendments thereto, any waivers and consents thereunder, and of each of the agreements executed in connection therewith)~~; *provided*, that no entity or Person, including the Sale Process Parties, any holder of an Attached Judgment, any Potential Bidder, or Buyer, or any Persons acting in concert with them, may commence or pursue any cause of action of any kind that arose or arises from, in whole or in part, the Special Master Order, the Sale Procedures Order, the Bidding Procedures, this Order, any other orders of this Court in this Action, or any cause of action related to the Sale Transaction, without this Court (i) first determining, after notice and a hearing, that such cause of action represents a colorable claim against such party and (ii) specifically authorizing such entity or Person to bring such cause of action against such party; *provided*, *further*, that no entity or Person, including the Sale Process Parties, any holder of an Attached Judgment, any Potential~~

~~Bidder, or any Persons acting in concert with them, may commence or pursue any cause of action of any kind against Buyer or Buyer Affiliates that arose or arises from, in whole or in part, this Order or the Sale Transaction, including any successor or similar liability, transferee liability, or other liability or obligation arising under or related to the sale and transfer of the PDVH Shares to Buyer, without this Court (i) first determining, after notice and a hearing, that such cause of action represents a colorable claim against such party and (ii) specifically authorizing such entity or Person to bring such cause of action against such party.~~.

25. ~~26.~~ *Effectiveness of Order*. This Order shall become effective and enforceable immediately upon its entry and its provisions shall be self-executing.

26. ~~27.~~ *Preservation of Post-Closing Rights*. Except as otherwise provided herein, this Order shall not prevent any Person from seeking to enforce a Claim for post-Closing conduct by Buyer or Buyer Affiliates.

27. ~~28.~~ *Preservation of Rights and Remedies*. Nothing in this Order or the Stock Purchase Agreement shall: (a) prevent any party from seeking or opposing an appeal or writ, or a stay pending appeal, of this Order or any other order, finding or determination, including any Sales Process Order, in each case in accordance with applicable law and in a court of competent jurisdiction; (b) prohibit any of the Venezuela Parties or any Persons or entities acting in concert with them from proposing an alternative to the sale of the PDVH Shares prior to consummation of a sale; or (c) prohibit any of the Venezuela Parties or any Persons or entities acting in concert with them from communicating with or advocating before any part of any government or representative thereof.

28. ~~29.~~ *Reservation of Rights Regarding Transaction Support Agreement, 2020s Notes Indenture, and 2020s Notes Pledge Agreement*. For the avoidance of doubt, this Order

does not modify or amend any rights or obligations of any party arising under (i) the Transaction Support Agreement; (ii) that certain Indenture, dated as of October 27, 2016, among PDVSA as issuer; PDVSA Petróleo, S.A., as guarantor; MUFG Union Bank, N.A. as trustee (the "**2020s Trustee**"); GLAS Americas LLC, as collateral agent (the "**2020s Collateral Agent**"); Law Debenture Trust Company of New York as registrar, transfer agent, and principal paying agent; and Banque Internationale à Luxembourg, Société Anonyme, as Luxembourg listing agent and paying agent (the "**2020 Notes Indenture**"); (iii) that certain Pledge and Security Agreement, dated as of October 28, 2016, among PDVSA as issuer; Petróleo, as guarantor; the 2020s Trustee; and the 2020s Collateral Agent (the "**2020 Notes Pledge Agreement**"); or (iv) any other Transaction Document (as defined in the 2020 Notes Indenture). All rights under the Transaction Support Agreement, 2020s Notes Indenture, the 2020 Notes Pledge Agreement, and all other Transaction Documents (as defined in the 2020 Notes Indenture) are reserved.

29. ~~30.~~ *2020s Notes Undertaking*. Buyer will comply with the Amber Energy 2020s Notes Extinguishment Undertaking filed by the court at [D.I.[●]].

Exhibit A

Stock Purchase Agreement

<u>Exhibit B</u>

Publication Affidavits

Summary report: Litera Compare for Word 11.7.0.54 Document comparison done on 11/20/2025 5:55:11 PM	
Style name: Default Style	
Intelligent Table Comparison: Active	
Original filename: Ex. A - Third Revised Proposed Sale Order (002).docx	
Modified filename: v2 Project Horizon - Fourth Revised Sale Order(100941940.1).docx	
Changes:	
Add	53
~~Delete~~	46
~~Move From~~	2
Move To	2
Table Insert	0
~~Table Delete~~	0
Table moves to	0
~~Table moves from~~	0
Embedded Graphics (Visio, ChemDraw, Images etc.)	0
Embedded Excel	0
Format changes	0
Total Changes:	103

Exhibit [D]

Second SPA Amendment

Execution Version

SECOND AMENDMENT TO STOCK PURCHASE AGREEMENT

This SECOND AMENDMENT TO STOCK PURCHASE AGREEMENT (this "***Second Amendment***"), dated as of November 20, 2025 (the "***Amendment Date***"), is entered into by and between Amber MSub LLC, a Delaware limited liability company ("***Buyer***") and Robert B. Pincus, solely in his capacity as the special master (the "***Special Master***" and, together with the Buyer, the "***Parties***" and each a "***Party***") for the Honorable Leonard P. Stark, United States District Court for the District of Delaware (the "***Court***"). Capitalized terms used but not defined in this Second Amendment shall have the meanings ascribed to them in the Purchase Agreement (as defined below).

RECITALS

WHEREAS, the Parties previously entered into that certain Stock Purchase Agreement, dated as of September 19, 2025, as amended by that certain First Amendment to Stock Purchase Agreement, dated November 13, 2025 (the "***Purchase Agreement***"); and

WHEREAS, in accordance with Section 9.7 of the Purchase Agreement, the Parties hereto desire to amend the Purchase Agreement as set forth herein.

NOW, THEREFORE, in consideration of the mutual agreements, provisions and covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties hereto hereby agree as set forth below.

1. **Amendment**. The Purchase Agreement is hereby amended as follows:

(a) Section 6.19 of the Purchase Agreement is hereby amended and deleted in its entirety and replaced with the following: "**Intentionally Omitted.**".

(b) Section 6.19(b) of the Company Disclosure Schedules is hereby amended and deleted in its entirety and replaced with the following: "**Intentionally Omitted.**".

2. **Effect of Amendment**. Except to the extent specifically modified herein, the Purchase Agreement shall continue in full force and effect, enforceable in accordance with its terms. Except as expressly set forth herein, this Second Amendment is not a consent to any waiver or modification of any other terms or conditions of the Purchase Agreement or any of the instruments or documents referred to in the Purchase Agreement and shall not prejudice any right or rights which the parties thereto may now or hereafter have under or in connection with the Purchase Agreement or any of the instruments or documents referred to therein. After the date hereof, any reference to the Purchase Agreement shall mean the Purchase Agreement as amended hereby.

3. **Governing Law**. This Second Amendment shall be governed by, construed and enforced in accordance with the internal Laws of the State of Delaware, without giving effect to any Laws (whether of the State of Delaware or any other jurisdiction) that would cause the application of the Laws of any jurisdiction other than the State of Delaware and without regard to any borrowing statute that would result in the application of the statutes of limitations or repose of any other jurisdiction. In furtherance of the foregoing, the Laws of the State of Delaware will control even if under such jurisdiction's choice of law or conflict of law analysis, the substantive or procedural law of some other jurisdiction would ordinarily or necessarily apply.

4. **Counterparts**. This Second Amendment may be executed in two or more counterparts (including by electronic transmission), each of which shall constitute an original, and all of which taken together shall constitute one and the same instrument.

5. **Incorporation by Reference**. Article I (*Definitions and Interpretive Matters*), Section 9.4 (*Dispute Resolution; Consent to Jurisdiction*), Section 9.5 (*Consent to Service of Process; Waiver of Jury*), Section 9.6 (*Entire Agreement*) as modified to contemplate this Second Amendment, Section 9.7 (*Amendments and Waivers*), Section 9.8 (*Notices*), Section 9.9 (*Severability*), Section 9.10 (*Binding Effect; Assignment*), Section 9.11 (*No Third Party Beneficiaries*), Section 9.12 (*No Recourse*), Section 9.13 (*Specific Performance*), Section 9.14 (*Successors and Assigns*) and Section 9.18 (*Special Master and his Representatives' Judicial Immunity*) of the Purchase Agreement are incorporated herein by reference, *mutatis mutandis*.

[Remainder of Page Intentionally Left Blank; Signature Pages Follow]

IN WITNESS WHEREOF, the Parties have caused this Second Amendment to be duly executed as of the date first written above.

BUYER:

AMBER MSUB LLC

By: ______________________________
Name: Elliot Greenberg
Title: Vice President

ROBERT B. PINCUS, AS THE SPECIAL MASTER:

By: ______________________________
Name:
Title:

IN WITNESS WHEREOF, the Parties have caused this Second Amendment to be duly executed as of the date first written above.

BUYER:

AMBER MSUB LLC

By: ______________________________
Name:
Title:

ROBERT B. PINCUS, AS THE SPECIAL MASTER:

DocuSigned by:
1EACB5A9C607496...
By: ______________________________
Name: Robert B. Pincus
Title: Special Master

Exhibit [E]

Amended and Restated Undertaking

AMENDED AND RESTATED
AMBER ENERGY 2020s NOTES EXTINGUISHMENT UNDERTAKING

To: Honorable Leonard P. Stark

Re: *Crystallex International Corp. v. Bolivarian Republic of Venezuela,* Case No. 17-mc151

Dear Judge Stark:

Consistent with representations made by counsel for Amber Energy on the record on August 18, 2025 and during the September 15-18 Sale Hearing before Your Honor in the above-captioned matter, Amber Energy Inc. ("***Amber***") and Amber MSub LLC ("***Amber MSub***" and, together with Amber and their respective direct and indirect subsidiaries, the "***Amber Parties***") enter into this Amended and Restated Undertaking regarding the Amber Parties' plan to extinguish the 2020 Notes tendered to Amber in connection with August 12, 2025 Transaction Support Agreement ("***TSA***") entered into by and between Amber and the holders of certain 8½% Senior Notes due 2020 ("***2020 Notes***") issued by Petróleos de Venezuela, S.A. ("***PDVSA***"). This Amended and Restated Undertaking amends and restates in its entirety that certain undertaking, dated as of October 28, 2025 by Amber and Amber MSub.

In connection with Amber's August 22, 2025 bid to purchase the shares in PDV Holding, Inc. ("***PDVH Shares***") attached in the above-captioned matter, Amber entered into the TSA, pursuant to which Amber will purchase, or cause a subsidiary to purchase, from each Consenting 2020 Noteholder[1] and each tendering Non-Party 2020 Noteholder (the "***Purchase***"), the 2020 Notes held by such Consenting 2020 Noteholder or such tendering Non-Party 2020 Noteholder. Pursuant to the August 12, 2025 Joinder to the TSA, Amber MSub agreed to become jointly and severally liable with Amber for all obligations of Amber under the TSA.

Pursuant to this Amended and Restated Undertaking, and for good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Amber Parties hereby undertake that, for so long as the Sale Order (as defined in the Amber SPA) is in full force and effect, (i) Amber shall not assign the TSA or any of its rights or obligations thereunder to any third party that is not an Amber Party, and (ii) from and after the consummation of the transactions contemplated by the TSA, the Amber Parties will not directly or indirectly, sell, assign, transfer, pledge, or otherwise exchange any interest in the Purchased 2020 Notes to any third party that is not an Amber Party, nor collect payment on, or seek to collect payment on or otherwise seek compensation from PDVSA or its affiliates of any amounts due under the 2020 Notes that were part of the Purchase.

Further, the Amber Parties undertake to use their reasonable best efforts to cause the 2020 Notes to be cancelled and extinguished, including in accordance with Section 2.11 and Section 9.02(b) of the October 27, 2016 indenture concerning the 2020 Notes, provided that all of the following conditions are met:

[1] Defined terms not defined herein will have the meaning set forth in the TSA.

(i) the sale of the PDVH Shares to Amber has been consummated and not reversed, undone, modified or limited in any way not contemplated in the Sale Order;

(ii) the Private Exchange has been consummated in accordance with the terms of the TSA;

(iii) the Amber Parties have received of all regulatory approvals required by applicable Law, including any general or specific license or licenses required by the U.S. Department of the Treasury's Office of Foreign Asset Control, in each case, in connection with the extinguishment contemplated in this Amended and Restated Undertaking;[2]

(iv) a final, binding judgment affirming and upholding the validity of the sale of the PDVH Shares to Amber MSub from which no further appeal or request for review lies has been entered and remains a binding judgment;

(v) there are no pending or threatened proceedings commenced against the Amber Parties challenging the validity of, or seeking relief related to, the TSA, the Purchase, the sale of the PDVH Shares to Amber MSub, or the extinguishment contemplated in this Amended and Restated Undertaking; and

(vi) the Collateral Release has occurred, any action seeking to reinstate any Liens and security interests in, to, or on the Collateral has concluded, and the applicable statute of limitations for any claims that could be brought by any 2020 Noteholders against the Amber Parties has expired.

[2] For purposes of this Amended and Restated Undertaking, (i) "Law" means any applicable foreign, federal, state, local law (including common law), statute, treaty, code, ordinance, rule, regulation, judgment, decree, binding directive, policy, injunction, order or other legal requirement of any Governmental Body; *provided*, that in no event shall "applicable Law" be deemed to include Laws and orders of the Bolivarian Republic of Venezuela, and (ii) "Governmental Body" means any domestic or foreign national, state, multi-state, municipal or other local government, including any governmental, regulatory, or administrative department, division, subdivision, agency, bureau, board, commission, or authority thereof, or any quasi-governmental or private body exercising any regulatory or taxing authority (to the extent that the rules, regulations or orders of such organization or authority have the force of Law), or any court, tribunal or arbitral body of competent jurisdiction.

IN WITNESS WHEREOF, I have executed this Amended and Restated Undertaking on this 20th day of November, 2025.

AMBER ENERGY INC.

By: ______________________
Name: Elliot Greenberg
Title: Vice President

AMBER MSUB LLC

By: ______________________
Name: Elliot Greenberg
Title: Vice President

Exhibit [F]

Redline of the Amended and Restated Undertaking vs. First Undertaking

AMENDED AND RESTATED
AMBER ENERGY 2020s NOTES EXTINGUISHMENT UNDERTAKING

To: Honorable Leonard P. Stark

Re: *Crystallex International Corp. v. Bolivarian Republic of Venezuela*, Case No. 17-mc151

Dear Judge Stark:

Consistent with representations made by counsel for Amber Energy on the record on August 18, 2025 and during the September 15-18 Sale Hearing before Your Honor in the above-captioned matter, Amber Energy Inc. ("***Amber***") and Amber MSub LLC ("***Amber MSub***" and, together with Amber and their respective direct and indirect subsidiaries, the "***Amber Parties***") enter into this Amended and Restated Undertaking regarding the Amber Parties' plan to extinguish the 2020 Notes tendered to Amber in connection with August 12, 2025 Transaction Support Agreement ("***TSA***") entered into by and between Amber and the holders of certain 8½% Senior Notes due 2020 ("***2020 Notes***") issued by Petróleos de Venezuela, S.A. ("***PDVSA***"). This Amended and Restated Undertaking amends and restates in its entirety that certain undertaking, dated as of October 28, 2025 by Amber and Amber MSub.

In connection with Amber's August 22, 2025 bid to purchase the shares in PDV Holding, Inc. ("***PDVH Shares***") attached in the above-captioned matter, Amber entered into the TSA, pursuant to which Amber will purchase, or cause a subsidiary to purchase, from each Consenting 2020 Noteholder[1] and each tendering Non-Party 2020 Noteholder (the "***Purchase***"), the 2020 Notes held by such Consenting 2020 Noteholder or such tendering Non-Party 2020 Noteholder. Pursuant to the August 12, 2025 Joinder to the TSA, Amber MSub agreed to become jointly and severally liable with Amber for all obligations of Amber under the TSA.

Pursuant to this Amended and Restated Undertaking, and for good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Amber Parties hereby undertake that, ~~following entry of a sale order substantially in the form~~for so long as the Sale Order (as defined in the Amber SPA) is in full force and effect, (i) Amber shall not assign the TSA or any of its rights or obligations thereunder to any third party that is not an Amber Party, and (ii) from and after the consummation of the transactions contemplated ~~in connection Amber's bid~~by the TSA, the Amber Parties will not directly or indirectly, sell, assign, transfer, pledge, or otherwise exchange any interest in the Purchased 2020 Notes to any third party that is not an Amber Party, nor collect payment on, or seek to collect payment on or otherwise seek compensation from PDVSA or its affiliates of any amounts due under the 2020 Notes that were part of the Purchase.

~~However, should the sale order not be entered, or be reversed or substantially modified on appeal in any way that prejudices or disadvantages the Amber Parties, or be subject to successful collateral attack or related proceedings imposing judgments or other obligations upon the Amber Parties not contemplated in the sale order, the above undertaking shall conclude, and the Amber Parties will retain the right to seek or demand payment, enforcement, or recovery from PDVSA or any other Person of any amounts due under the purchased 2020 Notes.~~

Further, the Amber Parties undertake to use their reasonable best efforts to cause the 2020 Notes to be cancelled and extinguished, including in accordance with Section 2.11 and Section 9.02(b)

~~[1] Defined terms not defined herein will have the meaning set forth in the TSA.~~

of the October 27, 2016 indenture concerning the 2020 Notes, provided that all of the following conditions are met:

---

[1] Defined terms not defined herein will have the meaning set forth in the TSA.

(i) the sale of the PDVH Shares to Amber has been consummated and not reversed, undone, modified or limited in any way not contemplated in the ~~sale order~~Sale Order;

(ii) the Private Exchange has been consummated in accordance with the terms of the TSA;

(iii) the Amber Parties have received of all regulatory approvals required by applicable Law, including any general or specific license or licenses required by the U.S. Department of the Treasury's Office of Foreign Asset Control, in each case, in connection with the extinguishment contemplated in this Amended and Restated Undertaking;[2]

(iv) a final, binding judgment affirming and upholding the validity of the sale of the PDVH Shares to Amber MSub from which no further appeal or request for review lies has been entered and remains a binding judgment;

(v) there are no pending or threatened proceedings commenced against the Amber Parties challenging the validity of, or seeking relief related to, the TSA, the Purchase, the sale of the PDVH Shares to Amber MSub, or the extinguishment contemplated in this Amended and Restated Undertaking; and

(vi) the Collateral Release has occurred, any action seeking to reinstate any Liens and security interests in, to, or on the Collateral has concluded, and the applicable statute of limitations for any claims that could be brought by any 2020 Noteholders against the Amber Parties has expired.

[2] For purposes of this Amended and Restated Undertaking, (i) "Law" means any applicable foreign, federal, state, local law (including common law), statute, treaty, code, ordinance, rule, regulation, judgment, decree, binding directive, policy, injunction, order or other legal requirement of any Governmental Body; *provided*, that in no event shall "applicable Law" be deemed to include Laws and orders of the Bolivarian Republic of Venezuela, and (ii) "Governmental Body" means any domestic or foreign national, state, multi-state, municipal or other local government, including any governmental, regulatory, or administrative department, division, subdivision, agency, bureau, board, commission, or authority thereof, or any quasi-governmental or private body exercising any regulatory or taxing authority (to the extent that the rules, regulations or orders of such organization or authority have the force of Law), or any court, tribunal or arbitral body of competent jurisdiction.

IN WITNESS WHEREOF, I have executed this Amended and Restated Undertaking on this 20th ~~this~~ ~~28th~~ day of ~~October~~November, 2025.

AMBER ENERGY INC.

By: Name: Elliot Greenberg
Title: Vice President

AMBER MSUB LLC

By: Name: E erg
Title: Vi

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